

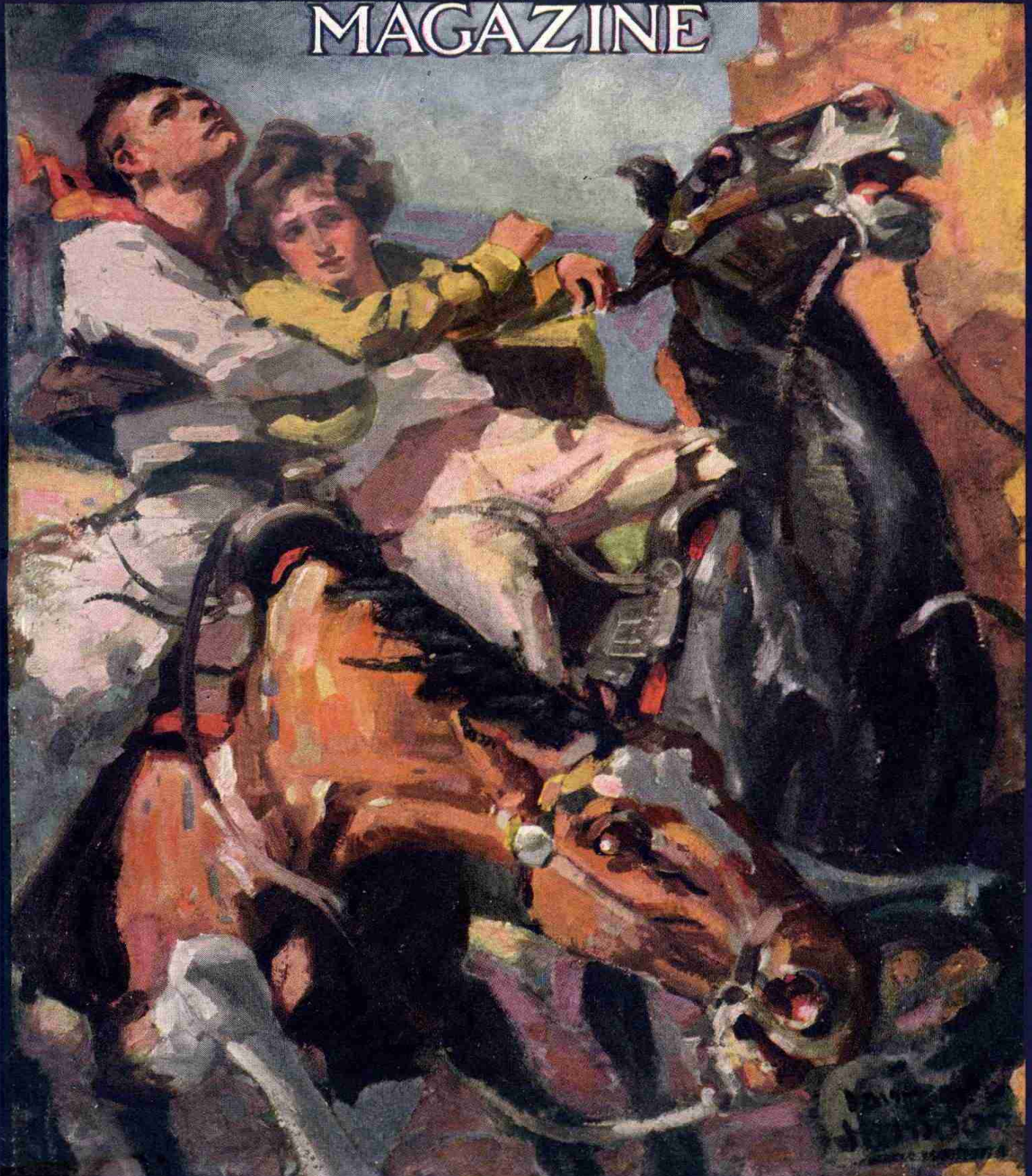
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THE BLUE BOOK

MAGAZINE



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Adventures of the Deep Water Men, Florida Kid, Free Lance and others

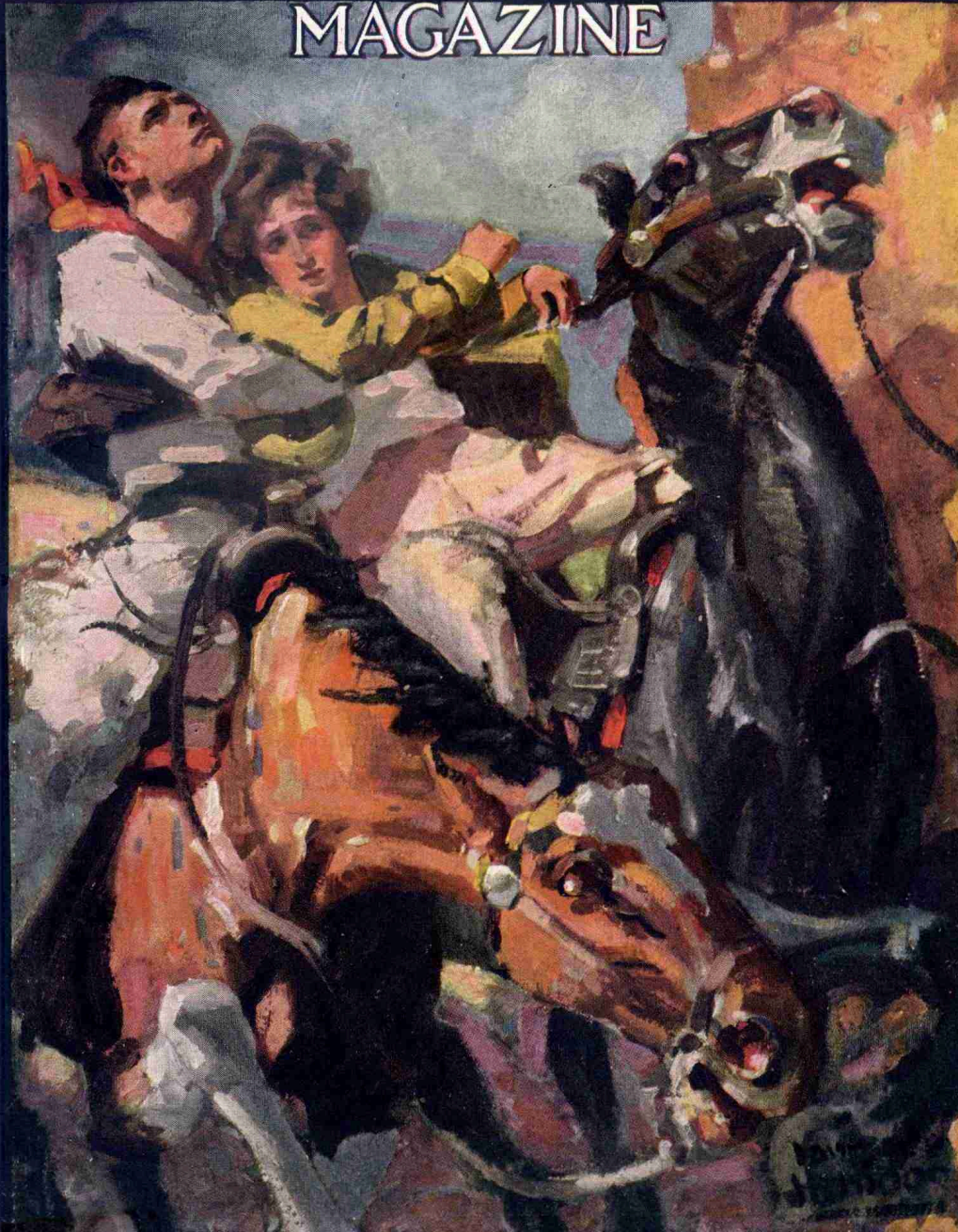
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The Riddle of the Rangeland



THE RIDDLE OF THE RANGELAND

By Forbes Parkhill

CHAPTER I

The modern West still keeps many of the old-time thrills, as you who read this captivating novelette of the Wyoming mountains will discover. Mr. Parkhill himself lives in the West; "The Ken-Caryl Case" and other stories have already won him fame as an excellent writing-man.

Sheriff Lafe Ogden, long-barreled blue revolver in his hand, knocked lightly on the rough pine door of the Red Rock ranger station. Then he stepped back softly and pressed himself close to the log-and-plaster wall beside his deputy, Seth Markey, and young Otis Carr.

There was no answer from within. The Sheriff raised his shaggy brows, pursed his lips and whistled softly. With a jerk of his head in the direction of the others, he stepped forward again. Suddenly he flung the door wide.

"Good God!" The exclamation burst from his lips, and checked the sudden advance of the two pushing forward on his heels.

"It's Joe Fyffe himself!" He nodded toward the crumpled figure which lay face downward on the floor.

"Dead?" asked Otis Carr in a strange, strained voice as he squeezed his huge bulk through the door. He wondered why he had experienced no great shock at the gruesome discovery. For Joe Fyffe, forest ranger, silent, odd and retiring, had been his friend.

The Sheriff dropped to one knee. He placed a hand on the ranger's wrist.

"Been dead quite a spell," he announced without looking up.

"Blood shows that," the deputy volunteered.

"Looky here how it's dried round the edges, on the floor underneath his arms there. Two, three hours, I reckon."

Otis Carr bent awkwardly over the huddled body.

"Shot, I s'pose," he speculated, his tanned face, somehow attractive despite its homeliness, showing a trace of awe and concern. Most of his life had been spent in the cattle country east of Jackson's Hole; yet the acts of

violence which it had been his lot to witness had failed to render him callous in the presence of death.

Sheriff Ogden turned the ranger's stiffening body on one side.

"That's where he bled from," he said shortly, pointing with the muzzle of his revolver to a tiny, stained hole in the ranger's shirt, under the right shoulder. "But that's what done the work," he added, indicating a similar hole in the back, just above the ranger's belt.

"It's a cinch it wasn't any accident," Otis drawled, glancing curiously about the interior of the ranger cabin. "I tell you, somebody plugged him."

"I don't see any gun," observed the Sheriff, rising, stepping over the body and walking to the door of the only other room.

"He couldn't 'a' had a chance. Nasty job, this!"

Otis followed him to the room which served as a sleeping chamber and office. Ogden removed a rifle from two wooden pegs in the log wall above the desk, examined it carefully, and shook his head. His scrutiny of a holstered revolver which swung by a cartridge belt from a nail in the wall was likewise barren of results.

"Neither one's been fired," he asserted, frowning and turning to the maps and papers on the rude pine desk. "He never had a chance to shoot back. You knew him pretty well, didn't you, Otis? D'you know whether he had any other guns?"

Otis shook his head.

"Don't think he did," he replied uneasily, casting his eye about the room. "He hardly ever packed the revolver. Sometimes he carried the rifle in his saddle scabbard, but it was on the chance of seeing a cat or something, and not for protection from—well, you know. He never seemed to worry about the threats of the boys that the Gov'ment couldn't send in any damned ranger to collect grazing-fees for using the open range."

The Sheriff turned from the desk to a workbench containing a shallow tank, wooden racks and a row of bottles.

"I know," he remarked gravely. "But between you and me, it aint like any of the boys to shoot him down like this. What's this junk?"

"Dark-room equipment," Otis answered, fingering a developing tray. "Joe was a nut on wild-animal photography, you know. Got some of the best animal pictures I've ever seen. Did his own finishing here at night. See

that blanket rolled up over the window? He'd let that down, and have a first-class dark-room."

"That's right," the Sheriff affirmed. "I remember now. He was the feller that bragged he was the only man that ever got a close-up picture of a wild mountain sheep, wasn't he?"

"I wouldn't say he bragged about it. But it was something worth boasting about, anyway."

Sheriff Ogden, his barren search of the office and bedroom completed, led the way back to the room where the body lay.

"Lucky we run into you, Otis," he remarked as he began a hurried search of its interior. "When I seen you ridin' down the Buffalo Forks road, I says to Seth, here: 'There's Otis Carr, who knows Joe Fyffe right well—maybe better'n anyone else in these parts. We'll ask him to go along.'"

"We didn't know what had happened, then. Just knew somethin' funny was pulled off here at the ranger station. Forest supervisor in Jackson called me before daylight, an' said he'd just got a flash on his phone, an' that some one was callin' for help. Operator told him the call was from Red Rock ranger station.

"He'd 'a' come along, only for a wrenched leg. Between you and me, he's a pretty decent feller, that supervisor, even if he is tryin' to collect grazin'-fees for the Gov'ment. I says to Seth here: 'Lucky thing these here ranger stations is connected with telephones for fire-calls. Man could have an accident an' lay there for a week if it wasn't for that wire.' I had a hunch it might be somethin' more than an accident, 'count of hearin' more or less how the boys been shootin' off their mouths. You been over the hill to Dubois, I s'pose?"

Otis, who had stepped to the pine table to retrieve the telephone, which was hanging close to the floor, turned quickly after restoring the instrument to its accustomed place and shot an odd, questioning glance at the Sheriff, who was stooping over the stove. Then he peered uncertainly at the deputy, who was kneeling by the outer door.

"N-o-o," he drawled, turning back to the table, nervous fingers clumsily fingering the telephone. "Guess the old man told you them rustlers been busy again, working over some of the Footstool calves. Jess Bledsoe says they been bothering around some of the Flying A stock, too. Well, I rode

over to the cabin of Gus Bernat, the French trapper, last night, figuring I might get a line on the fellow who's so free with the running-iron. Had a hunch he might be working the range down below Two-Gwo-Tee pass, but I couldn't see a thing—"

Deputy Seth Markey, seemingly impatient that the others should waste their time on such casual remarks with the mystery of the Fyffe killing confronting them, arose with an exclamation.

"Looky here, boss," he cried to the Sheriff, directing his attention to two tiny brown spots near the doorsill. "See them blood-drops? That means Fyffe was outside when he was shot, and run in here afterward. Let's take a look outside the cabin."

Ogden abandoned his examination of the stove, and the pair of worn, hobnailed Canadian pack boots hanging from the log ceiling above it by their leather laces, and joined his deputy at the door.

"Sure 'nough," he observed as he led the way outside the cabin, carefully scrutinizing the ground about the doorway. "Here's another. We'll just back-track this trail, an' see what we can find."

With difficulty they followed the thin trail of blood over the coarse gravel surface and pine-needle carpet of the pasture which surrounded the ranger cabin. It led through the open gate in the barbed-wire fence which inclosed the pasture. They lost it in the near-by creek bottom. In vain did they circle the spot where the last bloodstain appeared.

Some fifty yards away they came upon the cold ashes of a tiny wood fire. Sheriff Ogden pressed his hand among the charred fragments.

"From the feel of her, she might be a week old," he announced sagely. "The ashes aint flaky, but black, showin' that the fire didn't burn out, but was doused with water from the crick."

"But why," asked Otis curiously, "would anyone want to build a fire so near the ranger station? I tell you it couldn't be to cook a meal, because anyone could have dropped in and eaten with Fyffe."

"Maybe the ranger built it hisself," suggested the Sheriff. "What few tracks show in this coarse gravel is cow-tracks, and that don't tell us nothin'. Can't see any signs of a fight here. Let's go back to the cabin."

"He must have run in here after he was shot," speculated Otis upon reentering the shack, "and grabbed for the phone. Like as not he yelled for help once or twice, and then dropped to the floor. Or maybe he knocked the

phone off the table, and the supervisor heard him calling for help after he lay on the floor.”

“He knocked that camera off the table too,” the deputy volunteered. “I found it on the floor while you two was in the other room, and put it back on the table.”

“What’s this?” asked Otis, stooping and retrieving a stub of a pencil from the floor a few feet from the body. “I wonder if this means anything?”

The Sheriff glanced at it and grunted.

“Probably dropped out of his pocket when he fell. Or maybe he knocked it off the table with the phone and the camera.”

The deputy suddenly dropped to his knees beside the body.

“Looky here!” he cried, eagerness and excitement showing in his face as he looked up at them. He was pointing with a tanned and stubby finger at a straggling and meaningless black line upon the floor planking. One end trailed out to nothingness near where Otis had found the pencil. The other end of the line was covered with the splotch of blood. “Maybe he wrote somethin’ before he died!”

Sheriff Ogden seized a dish towel from a nail behind the stove. He moistened it with a dipperful of water from the bucket in the corner. Then he too dropped to his knees by Fyffe’s body and commenced to scrub at the bloodstained floor. Otis bent eagerly over his shoulder.

“There she is!” burst from the Sheriff’s lips as a faint scrawl appeared beneath his hands. He scrubbed vigorously a moment longer. All three peered at the pine plank as he desisted.

Five words were scrawled on the floor. Slowly Sheriff Ogden read them aloud—a damning message from the dead:

“*“Otis Carr shot me because—”*”

CHAPTER II

“Simple” Sample, cow-hand employed by Sterling Carr, owner of the Footstool outfit, was initiating Mariel Lancaster, visitor from Pennsylvania, into the mysteries of saddling a horse.

“There aint no need for you-all to saddle a horse, long as you’re around the ranch, here, ma’am,” he protested as he led a “plumb gentle” sorrel outside the Footstool corral. “They’s most always some of the boys about, that’s willin’ to he’p you if you say the word.”

Mariel, who had equipped herself with a quirt belonging to Margaret Carr, her school chum who had induced her to pay a visit to the Footstool ranch in Wyoming, frowned slightly and attempted to slap her boot, as if she had held a riding-crop. The quirt, however, was too limber, and refused to slap.

“I understand, but that’s just why I want to learn,” she insisted with some little spirit. “What if I’d be out somewhere alone, and have to saddle—”

“I bet you-all wont be ridin’ around alone, ma’am—not’s long as young Mr. Otis is here,” remarked Simple with assurance. He hadn’t failed to use his eyes during the week that Mariel had been a guest of the ranch, and his years gave him certain privileges which the other “boys” lacked.

Mariel flushed slightly, and then laughed.

“But he isn’t here today,” she challenged, as if seeking to elicit further information concerning Otis.

“No, ma’am,” Simple replied, his eyes narrowing as he looked away southward toward the Gros Ventre range, “I reckon he’s out there somewheres lookin’ over the range. First thing, ma’am, don’t go swishin’ that quirt around these broomtails. They’re liable to think yore in earnest. Old Dynamite, here, he’s plumb peace-lovin’ an’ reasonable, but even he’s got some right funny ideeas about quirts.

“Step up an’ gentle him some, ma’am, so he’ll know yore intentions is honorable. Not from that end, ma’am, or he may kick yore slats out—beg pardon, ma’am, I mean he mayn’t see it the right way. Go at him from the head end. That’s right.

“Naow fold yore saddle-blanket—so. Keep on the nigh side, an’ ease it over his spine. Slide it back with the grain of the hair. Fine. I bet that saddle’s a purty big heft for you-all, aint it, ma’am? Naow reach under his bel—I mean, reach under him an’ grab that cinch. Run the latigo through the ring—like this. Naow pull—hard.”

Mariel turned to her instructor, sorely puzzled.

“Very well. But what do you do when he swells all up, like this?”

“Kick him in the slats, ma’am. Kick him in the slats. Leastways, that’s what I’d do, seein’ as how you-all ast me. But I guess you-all cain’t do nothin’ but talk to him. No, that wont do, neither, cause a lady cain’t talk the language that ol’ reprobate understands. Reckon you’ll have to wait till he gits out o’ breath. Naow—pull quick, ma’am. Good! Tie it jest like you’d tie a man’s necktie. You aint never tied a man’s necktie? It’s like this-hyere.”

Mariel, panting but triumphant, stood back and admired her handiwork.

“There!” she cried exultantly. “Sometime I’ll get you to teach me how to put those—er—trademarks on the livestock. They call this the Footstool ranch because its trademark looks like a footstool, don’t they?”

“Yes’m. Only they don’t exactly call it a trademark. That horizontal line is the top of the footstool, and them two lines that slants away underneath, they’re the laigs.”

“You have such odd names for your—er—brands. Yesterday I heard Mr. Carr talking about the Lazy Y. What’s that like?”

“Jest the letter V, ma’am, leanin’ over to one side, like it was too lazy to stand up straight. That’s old man Yarmouth’s brand.”

“And the Flying A. That’s Mr. Bledsoe’s mark, isn’t it?”

“Yes’m. The bar of the letter A sticks out on each side, like wings. An’ because it looks like the letter A with wings, they calls it the Flying A. I notice young Jess Bledsoe’s been over quite frequent of late.”

Mariel colored, but smiled. “I think he’s so typically Western. He seems to be made for these picturesque cowboy costumes.”

“I reckon he never misses a chance to make his spurs jingle, ma’am,” Simple remarked, tugging at the tobacco-tag dangling from his vest pocket. “He wears the biggest hat and the hairiest chaps between the Wind River reservation and the Tetons. He likes to tell how he captured Ed Gunn, the outlaw, after Ed had shot the gun out of Jess’ hand, incidentally shootin’ Jess’ little finger off. But don’t get him wrong, ma’am—I bet he can set on

the hurricane deck of any bronc in these parts, an' he can shoot the eye out of a needle. Trouble is, he knows it. But I reckon that'll wear off in time."

"I've heard already how Mr. Bledsoe lost his little finger," said Mariel soberly. "He must be very daring. He tells me that the cattle-raisers are bothered by thieves who steal their stock. I should think they'd do something about it."

"They will, ma'am—when they catch 'em. Rustlin' aint the healthiest occupation in the world. Reckon it's the Radley boys, over in the Hole. That's Jackson's Hole proper, ma'am, over to the west there. Mebbe you've heard about Jackson's Hole, ma'am, as a hangout for cattle thieves an' such. Most folks think they hide in the Hole. But they don't. Anybody can get into Jackson's Hole. But when anyone comes, lookin' for calves that's been monkeyed with with a runnin'-iron, the boys jest draws back into the Tetons, where you cain't find 'em in a thousand years.

"Them's the Tetons over there, ma'am—them snaggle-toothed mountains that rise right up like a wall. The old French trappers named 'em, because they're like a breastworks. Behind that big one, the Grand Teton, are half a dozen trails leadin' out to Idaho. Many a posse's quit cold, ma'am, when they come to the Tetons."

"I understand. But isn't it hard to steal a cow and drive her so many miles without being seen by some one?"

"They don't have to drive 'em, ma'am—not on the open range. Jest slap a brand on a maverick, and leave him. Then come round-up time, when they're sorted out, the man with that p'ticler brand gets his calf without bein' asked no questions. No one hereabouts would think o' keepin' a calf with some one else's brand on him.

"But even if he does start to drive a critter to his home range, who's goin' to interfere with a man drivin' home a stray with his own brand on him? On the open range there aint no restrictions—'cept what the Gov'ment's made right recently. The Gov'ment up an' tells the cow-man that the open range aint open any more—that the Gov'ment owns it, an' is goin' to collect a grazin'-fee for every head of cattle on it.

"I never hearn tell of sech a thing, ma'am. Mebbe you don't understand it, but it makes every cow-man boil. Ever since there was a cow in this country, the cow-men have used the open range without payin' for it. How come the Gov'ment makes 'em pay now? Here's scads of grazin' land goin'

to waste. But the Gov'ment's goin' to have a real job on its hands, collectin' grazin'-fees from these ranchers."

Mariel failed to comprehend half of the old cow-hand's tirade, and her expression showed it.

"But do the ranchers think they can oppose the Government successfully?"

"They can make it so hot that no ranger'll dare come in here an' try to collect grazin'-fees. It wouldn't surprise me a mite, ma'am, if Ranger Fyffe, up at Red Rock ranger station, would up an' decide to leave the country right sudden. In fact, the boys was talkin' last night about issuin' him a formal invitation."

"What if he refused to go?"

"Well, ma'am, the boys have a right persuadin' way about 'em, I bet he'd go. If he didn't—well, he might stay, permanent."

Horror was growing in Mariel's eyes as she listened to old Simple's explanation.

"You mean to say they'd—they'd kill him?"

"Well, now, ma'am, a wise man can take a hint. There wont be any need for a killin'. For instance, say, one of the boys is picked to deliver a cordial invite to this ranger to leave the country—or to quit his job an' stay here like an honest citizen, for, y'understand, miss, no one's got anything personal against this ranger. If he got kilt, it would be a matter of principle, so to speak, with no hard feelin's toward him.

"Well, s'posin' he gets uppity an' balks. What then? Why, mebbe some one shoots up his place. Then, if he don't take the hint, mebbe they start shootin' in earnest. Nobody believes in unnecessary killin', ma'am, 'cept some real gunmen an' killers. But it all depends on the feller that delivers the invite, an' how the ranger'd take it. Naow, if the messenger'd get lit up a mite, an' mebbe think he was a woodtick an' it was his night to tick, an' if the ranger got nasty, why, anything might happen."

Mariel shuddered and said: "I think it's a cowardly thing to do."

"Mebbe so, ma'am, mebbe so," grinned the old cow-hand, shrugging. "I reckon you aint the only one thinks so, either. The boys drawed lots to pick who was to run the ranger off'm the range. The one they picked wasn't there. When they told him about it, that was just what he said. He give 'em

h . I mean, ma'am, he said it didn't look right to him. But I reckon he was just scared out, ma'am. Left in a huff, he did, sayin' he was goin' over to the cabin of Gus Bernat, the trapper, to look for rustlers. Said the Gov'ment had a right to collect grazin'-fees an' to limit the range, an' that it was all for the cowman's good in the long run. Next thing, I bet he'll be standin' up for the nester an' his damn bob wire—beggin' your pardon, ma'am. Bobbed wire is goin' to strangle the cow-man, if he don't look aout."

Mariel glanced at the tiny watch strapped to her wrist. Seemingly she was deeply interested in Simple's discourse on the cow-men's feud with the rangers, rustlers, nesters and barbed wire. But despite this apparent interest, she displayed evidences of impatience.

"It's nearly nine o'clock," she announced, almost petulantly. "I wonder if —"

"I shouldn't wonder, ma'am," Simple interrupted, grinning, "if that's him comin' naow."

A dashing figure on a white-stockinged chestnut had rounded the corner of the bunkhouse, and was approaching the corral at a trot. With almost a single motion he halted before them, leaped from the saddle and stood, hat in hand and bridle looped over his arm, smiling and bowing slightly before Mariel. She returned the smile.

"This is indeed a surprise, Mr. Bledsoe," she told him brightly, smoothing a fold in her riding habit. Simple chuckled.

"Just thought I'd drop over to see if the Footstool's got any line on those rustlers," Bledsoe began pleasantly. "Didn't think I'd be so fortunate as to find you, Miss Lancaster." Then, turning to Simple: "H'lo, Simp. Where's Otis?"

"Howdy, Jess," the cow-hand responded. "Reckon Otis is out some'ers down Gros Ventre way."

"Wonder if he's heard about the trouble up at the ranger cabin?" Bledsoe asked. "Some of the boys says the Sheriff got a hurry-up call from the Red Rock station."

CHAPTER III

Otis Carr, bending over the kneeling officer in the ranger cabin, seemed fairly stupefied with astonishment as Lafe Ogden read the words which branded him as the murderer of Ranger Fyffe. Even when the Sheriff turned and looked up at him, condemnation in his keen gaze and his hand instinctively seeking his gun, Otis stood petrified, oblivious of everything but the scrawled and blurred inscription on the floor. He still bent forward, eyes staring, pale beneath his tan, his mouth agape.

Deputy Seth Markey whipped his revolver from its holster. He did not train it upon Otis, but stood with arms crossed, eying him narrowly, alert for the slightest hostile move. Sheriff Ogden rose slowly to his feet, his gaze intent upon the younger man.

Through Otis' mind flashed a picture of Joe Fyffe, wounded, rushing into the ranger cabin, staggering toward the table, clutching at the telephone, frantically calling for help, and then slowly sinking to the floor, where he lay in agony. And then the ranger, knowing his life was measured by minutes, had striven to set down a message that would reveal the identity of the man who had shot him.

In the scene as reënacted in Otis' mind, Fyffe fumbled with stiffening fingers at his shirt pocket, searching for the stub of his pencil. Fighting down his agony, he scrawled his damning indictment of Otis—his friend!

And Otis, still standing there, bent forward, staring down at the floor, seemed to see the ranger's body suddenly go limp, the pencil dropping from nerveless fingers. And then the pool of blood slowly widening under the motionless body.

"Otis Carr shot me because—"

What would the rest of the sentence have been? What if Ranger Fyffe's heart had pulsed a few more beats? What would he have written?

And why—why had he written that Otis Carr shot him, when Otis had been fifteen miles from the ranger station throughout the night?

Gradually Otis became conscious of his surroundings again. He straightened, and looked from the Sheriff to his deputy, and back again. He

saw nothing in their gaze but cold conviction of his guilt.

Why didn't they say something? Why did they stand there, silent and impeaching? They had him on the defensive, at their mercy. He cleared his throat to speak, with no definite idea of what he would say. But the words would not come, and the sounds that issued from his lips were stammering and unintelligible. At last he made an awkward little gesture of helplessness with his hands, and dropped his head.

Sheriff Ogden, without taking his eyes from Otis, spoke to his deputy.

"Take his gun," he directed shortly. Otis remained motionless while Markey lifted the weapon from its holster, and rapidly passed his hands over Otis' body in search of other arms.

The deputy glanced at the revolver and turned it over to the Sheriff with the remark: "Been fired twice."

"How come, Otis?" asked the Sheriff, not unkindly, but with the air of one with an unpleasant duty to perform.

Otis suddenly found his voice.

"Shot at a rattler, just before I reached the Buffalo Forks road."

The trace of a smile hovered about Sheriff Ogden's lips.

"And I s'pose whoever shot Joe Fyffe come into the cabin afterward and wrote them words on the floor, just to throw suspicion on you?"

Otis raised his head and looked Ogden squarely in the eyes.

"No, Sheriff; Joe Fyffe wrote that. I've seen his writing before. This is a little bit shaky, but it's Joe Fyffe's writing."

The Sheriff raised his brows and emitted a low whistle of surprise.

"How do you account for his scribbling that on the floor, then?"

"I tell you I can't account for it," Otis admitted. "I own up that it struck me all of a heap. I was as much surprised as you when I saw it. You know I never had any quarrel with Joe Fyffe. We were friends. Why should I kill him?"

"Now, just between you and me, didn't your daddy say, like all the rest of the cow-men here, that the Gov'ment wasn't going to collect a penny of grazing-fees, and that the ranger ought to be run out of the country?"

Otis, who had regained his color after the first shock of the discovery, paled visibly again at the Sheriff's question. He hesitated an instant before he answered.

“Why, yes,” he retorted, “there’s no use denying that. You know as well as I that the Government rangers aren’t any too popular in the cattle country. But you admit that *all* the cow-men dislike the rangers. Why should that indicate any motive on *my* part?”

“I aint saying it does,” Ogden remarked. “I’m asking for information. Now, isn’t it true, Otis, that just because you was particularly friendly with Joe Fyffe, you thought you could talk to him better than anyone else? Wasn’t that the reason you come over here last night—not with any notion of killing him, mind you—but just to tell him he’d better clear out, before somethin’ happened?”

“I’m supposin’ that you came here to do him a service—to warn him to git out before there was trouble, ’cause I know you and him was pretty good friends. Now, Otis, tell me straight—wasn’t that about the way things sized up? One word led to another. Maybe he pulled a gun on you first, and you had to do it, or get killed yourself. If you’ll say it was self-defense, now, maybe that’ll go a long ways with the jury. Between you and me, haven’t I hit it about right?”

Otis, staring at Ogden, his eyes narrowed and his lips compressed, shook his head.

“I tell you, Sheriff, I didn’t kill Joe Fyffe. How could I claim self-defense when I was fifteen miles from here all night? And if I were the one who really killed him, do you think I’d have shot him down like this, without giving him a chance?”

The Sheriff shrugged and turned away.

“Remember, Otis, I’m tryin’ to help you. Of course, I can’t make you say what you don’t want to say. But if you think you’ll ever get away with an alibi defense, in the face of that writin’ on the floor and those empty cartridges in your gun—why, you’ve got another guess comin’. But a self-defense plea may get you somewheres. I’m just tryin’ to give you a tip, that’s all. It’s none of my funeral.”

Otis, who had regained his composure to some extent by this time, cried out with some display of eagerness:

“Well, there’s one way we can settle this whole thing, Sheriff. Let’s ride over to Gus Bernat’s cabin right now, and if he tells you I wasn’t at his place last night, then I’m willing to go to jail.”

The Sheriff frowned and shook his head.

“No chance, Otis. It’s too far. I’m afraid we’ll have to take you to Jackson under arrest, and investigate the evidence afterward. But I’ll send word to Gus to come to town tomorrow. If his story fits in with yours—well, then it will be up to the prosecuting attorney to decide what to do. Seth, you telephone the coroner. Then we’ll cut that plank out of the floor as evidence, and get started back to town.”

While the deputy was carrying out the Sheriff’s instructions, Otis seated himself at the table, and rolled and lighted a cigarette. He made note of the fact that there was not the slightest tremor in his fingers, and was glad, for he knew his every act was being observed closely, and that evidences of nervousness would not help him.

He had banished the panic which had possessed him at first when he read the dead man’s accusation. Now he reflected that all that was needed to tear asunder the veil of suspicion which enveloped him, was Gus Bernat’s alibi. His spirits rose with the thought, but he did not neglect to study every feature of the room as he waited. For he knew that even though Bernat’s alibi would free him from facing trial, nothing but the discovery of the identity of the real murderer would absolve him from suspicion in the minds of the residents of the community. And there was one person in particular whose regard had come, within the last few days, to mean far more to Otis than he had realized until he had been snared in this trap of Fate.

“All right, Otis, let’s go,” Sheriff Ogden called when the deputy had ripped from the floor the plank containing Joe Fyffe’s dying words. He permitted the door of the ranger cabin to remain unlocked, explaining that the coroner would fasten it after removing the body.

Otis’ chestnut pony, a rugged little mountain animal which had gained the name of “Pie-face” because of the splotched white star between his eyes, turned an inquiring look at the approach of his master. Like all Western saddle-horses, Pie-face had been taught to stand as though hitched as long as his reins were trailing on the ground. As Otis passed the reins over the animal’s head, he threw one arm about the neck of his loyal little mount and patted him affectionately. Here, at least, was one friend who would always believe in him!

“Looks like rain, Sheriff,” Otis drawled with assumed nonchalance. “Look at those clouds rolling over the Tetons. By the way, are you going to use your—er—handcuffs?”

“Handcuffs?” repeated the Sheriff almost indignantly. “What’d we want with handcuffs? We got our guns, and you aint armed. You wouldn’t dare make a break. We know it, and you know it. No, Otis, I aint going to rub it in. But if you’ll give me your promise you wont try to make a break, it’ll make it a whole lot easier for me.”

Otis laughed shortly. Already they had started down the narrow trail which led from the ranger station to the Buffalo Forks road. Markey was in the lead, and Ogden brought up the rear.

“Sure, Sheriff—I’ll promise you I wont try to get away. If I tried to escape, that would be a mighty good sign that I’m guilty, and that I’m scared to face a showdown, wouldn’t it?”

They were nearing the road, which skirts Red Rock creek, when Markey suddenly reined in his mount and directed Ogden’s attention to a moving figure in the aspens beyond the stream. For a moment Sheriff and deputy eyed the figure and conversed in undertones.

“Looks like one of the Radley boys,” Sheriff Ogden announced at length. “Wonder what he’s doing over here, so far off his own range. Guess we’d better find out.”

CHAPTER IV

“What’re you going to do with me?” Otis inquired, the trace of a smile playing about his lips.

The Sheriff, puzzled, turned to his deputy.

“You better stay here with Otis, Seth,” he directed. Then he glanced at the spot across the stream where the moving figure had disappeared in the trees. For an instant he pondered, uncertain.

“No,” he announced in a moment, “that wont do. It would take two of us to get him, now that he’s in that timber. Guess we’ll have to let him go.”

“Wait a minute,” objected the deputy. “I’ll fix it so we can both go.”

He swung from the saddle, reached in his saddlebags and drew forth a pair of nickel-plated handcuffs.

“Hate to do this, Otis,” he began hurriedly, “but we wont be gone long. Just step over by this tree.”

Otis dismounted, not at all pleased that his pledge not to attempt to escape had not been accepted. He resolved, however, to make no protest, knowing that were he in the place of his captors, he would take every precaution to prevent the escape of a prisoner, if he deemed that prisoner guilty of murder. So without a word he stepped to the tree.

The deputy snapped one of the steel circlets about his left wrist. Then he brought Otis’ right hand about the trunk of the tree, a fairly large lodgepole pine, and snapped the other end of the handcuffs about his right wrist. Otis was left standing, facing the tree, his arms about its trunk, and his wrists pinioned on the other side of the pine.

“Sorry,” the deputy told him shortly as he flung himself into the saddle again. “We’ll be back pretty soon.”

The Sheriff had said nothing while Markey had been fastening Otis’ arms about the tree. Otis watched them ford the creek and plunge into the timber on the farther bank. He was glad that the tree was far enough removed from the road that none of his friends, who might be passing, could discover him in his humiliating predicament. Pie-face stood on the creek bank, a few yards distant, cropping the grass by the water’s edge. Otis knew that so long

as his bridle was dragging there would be no danger of his straying away into the timber.

For perhaps five minutes Otis struggled vainly to work himself into a position where he might draw his tobacco and cigarette papers from his vest pocket. Finally, with an exclamation of impatience, he desisted in his attempt to prepare a smoke, and devoted his efforts to devising a means whereby he might sit down.

This, too, he found to be impossible. The base of the tree-trunk was too large, and the roots sloped off over the creek bank at such an angle as to make a sitting posture out of the question.

Otis was curious to know the result of the expedition of Sheriff Ogden and Seth Markey in pursuit of the figure which had melted into the timber. He too had caught a fleeting glimpse of the man, and believed it to be "Soggy" Radley of the Jackson's Hole country. Soggy had gained his sobriquet through his ability to enjoy his own flapjacks, which no one else, even his brother Ginger, could stomach.

The presence of one of the Radley boys so far from his own range was full of meaning to Otis. Coupled with the recent brandblotting from which various stockmen in the vicinity had suffered, it meant that Soggy would have much to explain—particularly in that he was not keeping to the open trail, but was skulking through the timber afoot.

A chipmunk approached Otis over the rocks in a series of quick advances and shorter retreats. The little animal finally reached a point within a yard of his feet, and for a moment sat erect on its haunches, eying him curiously from beadlike eyes. Presently it discovered a seed fallen from a pine-cone, and retired to a near-by rock, where it sat nibbling away and flirting its tail, but keeping a wary eye upon him.

Otis wondered what Sheriff Ogden would do if he should discover Soggy Radley in the act of using a running-iron on a Footstool calf. He believed that the Sheriff would relish making such an arrest far more than he had relished making the arrest of Otis himself on the charge of murdering Ranger Fyffe.

The capture of one of the Radley boys, with sufficient evidence for a conviction, would meet with popular approval, and would make many votes at the next election. Otis knew Sheriff Ogden to be an easy-going official of

the type which makes a good politician, eager to please everyone, if possible, and loath to make enemies.

Although the Sheriff was likable enough, and when the occasion demanded it, a fearless officer, Otis knew that most of his official acts were accomplished with an eye to their effect at the next election.

He believed, also, that Ogden would have been reluctant to cause his arrest, had he not been convinced of Otis' guilt. And in view of the circumstances of the damning bit of writing on the cabin floor, and the empty shells in his revolver, he could not hold it against the Sheriff that that official was so confident he had committed the crime.

"Wait until he talks to Gus Bernat," Otis said aloud, frightening the chipmunk, "then I'll have the laugh on him."

It would be odd indeed, he thought, if the Sheriff should return with Soggy Radley as his prisoner, charged with the theft of cattle from Otis, whom he held on a charge of murder.

A cold wind, sweeping down from the snow-covered Tetons, set the leaves of the quaking aspen atremble, and sung through the branches of the pines. Otis glanced at the sky, and uttered an exclamation of exasperation.

"Looks like I'm in for a good drenching," he remarked to the chipmunk, which scuttled away among the rocks again. "It's a wonder they didn't take a look at the weather before they left me chained up like this. But then, I suppose prisoners can't be too particular."

The wind ceased. A big drop of rain splashed on the rock where the chipmunk had sat. Then, with a rush, the storm broke. The wind lashed the aspen grove, until Otis, peering through the sheets of rain, could see nothing but the silvery under side of the leaves.

He shrank against the tree, circling to the east so the trunk might afford him some measure of protection from the driving rain. He was thankful for the little shelter that the spreading branches of the pine gave him.

There was a flash of lightning—the lessening roll of thunder echoing from the rocky walls of the gulch. He could barely make out the trees on the far side of the creek. Pie-face, his back humped to the storm, stood head down, now and then casting a curious glance at his master, who made no move to lead him to shelter.

Suddenly there was a terrific report. Otis believed he could feel the earth tremble beneath him. He knew that the lightning had struck a tree somewhere in the gulch near by.

Then, for the first time, he was assailed by a questioning fear for his own safety. He remembered coming upon the bodies of a score of sheep that had sought shelter beneath a huge tree in the highlands near Two-Gwo-Tee pass two years before, only to be electrocuted in a mass when a bolt of lightning struck the tree. He cursed the deputy for his thoughtlessness in chaining him to the pine, when it was plain that the electrical storm was approaching.

Tied to his saddle was his slicker, which might have saved him from the chilling rain. He called to Pie-face, but the animal, true to the tradition of the range horse, would not stir so long as his bridle was dragging.

Presently he raised his head and sniffed suspiciously. He thought he detected the odor of burning pine. He wondered if the lightning had set fire to the tree which it had struck. He edged about his tree and swept every portion of the narrow gulch with a searching glance.

What if the lightning had started a forest fire? He had known of fires started by lightning which had swept through the timber for miles before they had been checked or had burned themselves out. Was he chained and helpless in the path of such a fire, to be burned to death without a chance for his life?

Presently, however, the storm subsided. A few minutes more, and it had gone as suddenly as it had come. The sun broke through over the jagged crest of the Tetons. Otis watched the black rain-clouds as they swept on rapidly eastward.

Still there was no sign of the return of Sheriff Ogden and his deputy.

Otis edged about the tree into the sun light. He became conscious, presently of a low hum which seemed to pervade the air. Pie-face pricked up his ears nervously and stood gazing up the gulch. The chipmunk emerged from the rocks and scuttled away up the mountainside.

The hum grew into a roar. The roar became like the crash of artillery.

Otis shot one glance up the narrow gulch. He saw a brown wall of twisting, turning and crashing timber sweeping down upon him. He could see no water. Yet he knew that the twelve-foot wall of smashing tree trunks and rubbish was the forefront of a brown and swirling flood.

He threw himself backward with all his weight in an attempt to break his bonds. The handcuffs bit deep into his wrists, but held. He was insensible to the agony as he threw himself backward again and yet again.

Twice he had seen sudden floods caused by mountain cloudbursts sweep down a narrow gulch, carrying everything before them, eating away at the mountainside and tearing out great boulders in their path. He had seen a stanchly built log cabin blotted out in an instant, and had aided in the search for the body of its occupant, which was never found.

Terror conquered training in Pie-face. The horse broke and ran, striking diagonally up the rocky slope, struggling upward with the agility of a pine marten.

Even as he struggled, Otis, white-faced and gasping, could picture himself crushed beneath the crashing wall of logs. With a tremendous heave, he threw himself backward for the last time. The handcuffs held.

He swung himself about the tree. It flashed through his mind that its sturdy trunk might protect him to some extent against the shock of the impact. But even if he were not crushed like a bear in a deadfall, he felt that, chained to the tree, he would be drowned beneath the chocolate waters. In a last frantic effort to escape he began awkwardly to climb the tree.

The cold breath of the flood engulfed him. The smashing of the timbers drowned out all other sound. He closed his eyes and clung to the trunk.

Then the flood struck.

CHAPTER V

“On the level, Miss Lancaster,” Jess Bledsoe was saying as they jogged along the Buffalo Forks road, “Otis Carr is a mighty fine chap. All the boys hereabouts like him. A little retiring, sometimes, and mighty awkward all the time. But he’s pretty level-headed, except once in a while when he lets his temper get away with him. And he knows the cattle business from hoof to ears, and range to stockyards.”

Mariel smiled. “Margaret worships her big brother,” she volunteered. “She used to show me his letters while we were at school together. From what she told me about him, I rather expected to find him a sort of superman. He isn’t at all as I pictured him.”

Jess glanced at her curiously. “You aren’t disappointed, are you?” he asked with just a trace of jealousy in his query.

“Indeed I’m not,” Mariel replied, looking away. “He isn’t a superman by any means. He’s very human.” And then, as an afterthought, she added: “And modest!”

Jess looked at her a trifle suspiciously. “You know,” he said, “there’s grown to be quite a friendly rivalry between Otis and me.” Mariel shot a doubtful and inquiring glance at him. “Each of us wants to be the first to catch the rustlers who have been getting into our stock,” he went on; and Mariel breathed a sigh of relief.

“We both believe the Radley boys over in Jackson’s Hole are the ones responsible for all this rustling, but so far, we haven’t been able to prove a thing. If the boys ever catch them at it—well, it’s going to be pretty tough on the Radley brothers.”

“But isn’t cattle—er—rustling just plain stealing?”

“Some say it’s worse than that, Miss Mariel.”

“Well, then, why don’t the police, or whoever enforces the laws, arrest these people and bring them to trial?”

Jess laughed good-naturedly.

“Well, there’s several reasons for that. The penalty provided by the law isn’t stiff enough to worry the rustlers much. So the cattle men sort of figure that they can attend to the situation without bothering the Sheriff about it.

And they can, usually— if they're smart enough. But it seems that none of us hereabouts is quite smart enough to catch them in the act. They do say that sooner or later they all get caught. But as long as these rustlers don't overplay their hand, they may continue to get by almost indefinitely.

"They say that a good many of the ranches in this country were built up by the—er—foresight of their owners in keeping a keen eye on mavericks, and in not being too particular as to what stock they placed their brands on.

"Now, maybe these rustlers are just following their example. Maybe they intend to build up a herd the way the others have done, and then quit rustling and operate—er—legitimately.

"In the second place, the Sheriff can't go out and arrest Soggy Radley or his brother just because Otis Carr or I or anyone else happens to entertain a suspicion that they're cattle rustlers. Remember, such a charge would have to be tried before a jury, and so the Sheriff would have to have something more than suspicion before he made an arrest. And maybe the jury would include one or two cow-men who hadn't been so particular themselves in slapping their brands on stray stock. So, even if you've got pretty conclusive evidence, that doesn't necessarily mean a conviction.

"No, the boys figure on handling the situation themselves, and I guess it's just as well. Sooner or later Otis or I or some one else is going to get something on these Radley boys. And then they'll decide to drift along through the Tetons to Idaho or somewhere where the climate's more agreeable. If they don't—well, they'll get what Ed Gunn the outlaw got, when he shot this finger off. They hanged him afterward."

Mariel, puzzled, shook her head.

"I don't know that I quite get your point of view out here," she told Jess soberly. "At home when anything like this happens, we go to the proper authorities, and they do something about it. Here you seem to take things into your own hands, without regard for authorities—that is, if you don't actually oppose the authorities, as in the case of the forest rangers."

Jess turned in his saddle and peered at her searchingly.

"Did Otis tell you about our trouble with the ranger here?"

"That picturesque old cowboy, Mr. Sample, told me about some bloodthirsty plot which was being concocted to frighten the ranger into leaving this region. I think it's a cowardly thing to do!"

“Old Simp?” Jess laughed. “He shoots off his mouth just to hear himself talk. I wouldn’t believe everything he says, Miss Mariel.”

“Then it isn’t true?”

“Well—” Jess hesitated. Without answering her question, he asked: “Did old Simp mention—er—anyone in particular?”

“I think he spoke of their drawing lots to choose one of their number to deliver the threat to the ranger. But I believe he said the man refused to be a party to the outrageous proceeding.”

“Did he mention any names?”

“No, I think not. Why? Do you know the man?”

Jess grunted. “Now, Miss Mariel, you’re asking me to tell you something I shouldn’t.”

Mariel lifted her eyebrows. “I beg your pardon, Mr. Bledsoe. I have no desire to pry into any of your secrets.... Look at those black clouds. Don’t you think we’d better turn back to the far—ranch, I mean?”

Jess was worried, and showed it.

“You wouldn’t want me to turn talebearer, would you, Miss Mariel?” he asked her.

“Not at all,” Mariel replied coolly, reining in her horse. “Don’t you think it’s going to rain?”

Jess laid a gloved hand on her bridle.

“Now, Miss Mariel, I didn’t mean to offend you,” he pleaded. “Can’t you see the position you put me in?”

Mariel turned her back on him—perhaps that he might not see the smile playing about her lips.

“But you admit there was such a conspiracy?”

“If you want to call it that—yes.”

“And Mr. Sample wasn’t stuffing me, then?”

“In the main he was right, I suppose. But old Simp does love to paint things in lurid colors.”

“And you don’t think it’s going to rain?”

Jess scanned the black clouds which now obscured the Tetons.

“These mountain showers don’t last very long. We can find shelter under some of these overhanging rocks.”

“I think I prefer to start back to the ranch. Isn’t this thing rolled up behind my saddle a raincoat?”

“It’s a slicker, Miss Mariel. If you really want to turn back, you’d better put it on before we start.”

At a glance from her he leaned over, untied the thongs which held the slicker, and without dismounting, held it while she thrust her arms in the sleeves.

Mariel, unaccustomed to the foibles of Western horses, drew the yellow oilskin forward with a widespread flourish. Instantly Dynamite, old but temperamental, leaped forward and bolted. Ears laid back, his body close to the ground, he started down the Buffalo Forks road, bent on outrunning the flapping slicker which had frightened him.

His first leap had almost dislodged Mariel from the saddle. She did not scream, but a startled cry of alarm burst from her lips as Dynamite bolted.

She had let the reins drop as she had raised her arms to don the slicker. Now she clutched at the pommel, and clung to it with every ounce of her strength.

Instantly Jess had dug his spurs into his white-stockinged chestnut. He was but two lengths behind old Dynamite, and the chestnut was a far fleeter animal.

Jess might have overtaken Dynamite, and forced him to stop by crowding him into the embankment on the far side of the road. Or he might have grasped the bolting horse’s bridle, causing him to slow down gradually.

But Jess was nothing if not dramatic. He spurred the chestnut forward until he was racing neck-and-neck with Dynamite. He leaned over and grasped Mariel about the waist. He threw his weight back and dragged her from the saddle, meanwhile reining in the chestnut, which came jerkily to a halt.

Jess lowered the girl to the ground. He leaped from the saddle, and an instant later was supporting her with an arm about her waist.

For a moment Mariel clung to him, gasping. Slowly the color returned to her face. Presently she moved away from him uncertainly. He made as if to follow her, but was fended off by an outstretched arm.

“Oh!” she panted, speaking for the first time. “That was splendid of you, Mr. Bledsoe! Why, I might have been killed!”

“It was nothing,” Jess assured her with every appearance of modesty. “I’m glad I could be of service—Mariel.”

It was the first time he had addressed her by her first name. She affected to take no notice of it.

“I don’t know how I can ever repay you,” she protested. “If it hadn’t been for—”

“Forget it!” Jess interrupted magnanimously. “If you feel faint—” He stepped forward again.

“Oh, I’m all right now,” she assured him with a little laugh. “Look at Dynamite. He’s cropping the grass as if he’d never in the world thought of running away.”

Jess knew better than to attempt to press his advantage too far. He stalked forward with jingling spurs and grasped the bridle of Dynamite, who had come to a halt a score of yards away.

“I—I guess we’d better start back. It’s starting to rain,” she faltered, plainly a bit afraid of her mount, who eyed her innocently when Jess led him back.

“Don’t let him see you’re scared of him,” Jess advised, cupping his hands to help her into the saddle. “Just keep that slicker from flapping, and he wont try it again.”

The pounding of hoofs became audible down the road. Both turned, and presently a horseman rounded a turn in the road at a full gallop. He drew in as he came abreast them. It was Spider Ponsonby, a lanky member of the Footstool outfit.

“Heard the news?” he called. And then, without waiting for a reply: “Ranger Joe Fyffe was murdered last night. And the Sheriff’s got Otis Carr under arrest!”

CHAPTER VI

Otis felt the trunk of the tree tremble and give at the first shock of the flood. Almost instantly the rushing waters overwhelmed him. Their icy grip clutched and tore at his arms and legs as he clung to the trunk. All sight and sound was blotted out by the chocolate flood.

Abruptly he became conscious that he no longer was in an upright position. Still clinging to the tree, he felt himself turning over and over with it. He remembered that the roots had been partly exposed in the creek-bank, and knew that the pine had been uprooted by the flood.

For a mere instant he felt himself above the surface. He gasped for breath. Immediately he was plunged beneath the rushing waters again. He clung to the tree with all his strength. He knew that once his legs were torn from the trunk, he would be hurled about by the torrent until his arms, still pinioned by the handcuffs, would be snapped in a dozen places.

Strangely enough, his terror of the instant before had left him. His brain was remarkably clear. He knew that what little chance for life was left him depended upon his clinging to the tree.

His first impulse had been to struggle. Instinct urged him to release his grip, to strive to break his bonds, to fight his way to the surface. But reason conquered. He gripped the whirling tree with every atom of his strength.

With a jar that racked every bone in his body the tree stopped. For just an instant he felt the swift current tugging at his body again. Then he felt the tree lifted from the water.

He shook the water from his eyes. At first he saw a jumble of rocky walls and green trees and blue sky and chocolate water. Then he realized that he was upside down. He saw that the tree-top had collided with a huge boulder. The force of the water was hurling the trunk, roots uppermost, through the arc of a huge circle. The tree-top, jammed against the boulder, formed the axis of the arc.

It seemed ages before the tree was upended, and crashed down again through the lower half of the arc. Clutching leechlike, upside-down, he had time to note that the tree-top was now but a mass of jagged branches, broken off close to the trunk. But although it seemed ages that he was being

hurled through the air with the tree, in reality he had barely time to gasp again for air before he was plunged beneath the surface. Once more he felt himself whirling and turning with the tree as it was swept down the rocky gorge.

Otis had feared that he would be crushed in the maelstrom of milling logs and debris at the forefront of the flood. A quick glance while he hung suspended in the air showed him that the boiling surface of the waters was free of all except the smallest branches. He knew that the tree must have withstood the first shock of the flood—the wall of water he had seen bearing the swirling mass of timber.

But the peril of being crushed in the tumbling conglomeration of debris was far from being the only risk. He knew that at any instant he might be battered against a boulder, or ground between the trunk and the rocky walls of the gorge. True, the jagged stumps of the branches at one end of the trunk, and the spreading mass of roots at the other to some extent served to protect him from the rocks. Once, indeed, he felt a shock and became conscious of a numbness in his right leg. He never knew whether it was a jutting boulder or a log which had struck him.

He was becoming dizzy from the ceaseless whirling, and from the repeated necessity of holding his breath. He feared he would become so dazed that his grip on the tree would relax. The tree collided with another rock, and the shock left him breathless.

Strangely enough, he had no fear of drowning, so long as he could remain conscious. He knew that unconsciousness meant drowning, or else being beaten to a lifeless pulp against the rocks. But every few seconds he would find himself thrown above the water as the trunk revolved in the murky maelstrom. And each time he managed to gasp for breath before he was again submerged.

Suddenly above the roar of the flood came a terrific, wrenching crash, accompanied by a shock that left his senses reeling. There was a rending and a tearing of splintered wood. He felt his grip loosen on the rough trunk. The lower part of his body was torn away from the tree.

“This is the end,” was the one thought that emerged from the confusion of his senses.

The flood clutched at him, dragged him along the trunk, his manacled wrists jerking and tearing along the rough bark. Darkness overwhelmed him. He felt that he was floating away on billowy clouds. The roar of the flood grew dim....

Returning consciousness found Otis Carr lying on a high gravel bar. He started to raise a hand to his eyes; but he had forgotten the handcuffs.

He sat up. He still heard the roar of the flood. As his brain cleared, he saw the brown waters rushing past, less than a yard from his feet. A chocolate fountain spurted high in the air where the rushing waters encountered a submerged rock. The tree—

He looked about for the tree that first had been the means of pinioning him in the path of the flood, and then had been the means of saving his life. Thirty yards upstream he saw a mass of roots jammed between two boulders. An immense splinter was all that remained of the bole. The branches and upper portion of the trunk were nowhere to be seen.

Otis rose slowly to his feet. His right leg was still numb. The sleeves of his coat, above the manacles, were ripped and frayed. Blood trickled in a thin stream from beneath one cuff. His clothing was saturated with the muddy water. Every muscle in his body was stiff and sore. He felt of a good-sized lump above one ear, but noted that there was no abrasion.

Gradually, as he stared at the mass of roots jammed in the boulders, it dawned on him what had happened. The tree—his tree—had collided with the boulders with terrific force. The impact had been so great that the trunk had been shattered. The upper part of the tree had been swept downstream by the current, which had dragged him along the splintered portion of the trunk until it had swept him free. It had carried him, too, downstream, to cast him up on the high gravel bar as if he had been but another fragment of driftwood.

He wondered how far downstream he had been swept by the flood. The time he had been buffeted about by the onrush of waters had seemed interminable. He cast about to get his bearings—and to his surprise, he found he was barely three hundred yards from the spot where he had been manacled to the tree.

Slowly, because of his stiffened limbs and handcuffed wrists, he climbed up the rocks and out of the gorge. He made for the Buffalo Forks road sixty

yards away, and started back upstream. Rounding a bend in the road, he beheld Pie-face standing, ears upraised inquiringly, not one hundred feet above the spot where Otis had been swept away with the tree.

Otis swung into the saddle, and immediately Pie-face started down the road at a trot. Unlike the cavalry horse, which is trained to stand after the rider mounts until a touch of the heels gives him the signal to go, the range horse moves the instant he feels the weight of the rider in the stirrup. So Otis without directing the horse, found himself headed back toward the Footstool ranch.

For the first time he realized that it might be unwise to return to the ranch, particularly with his wrists in manacles. His narrow escape from the flood had driven from his mind, for the time being, all thought of his predicament resulting from his arrest for the murder of Fyffe. Now it was brought home to him forcibly by the instinctive course of his horse.

What should he do? Undoubtedly he could make his way to the ranch and rid himself of the handcuffs. Any of the ranch employees, he knew, would assist him in filing them off, and would aid in his concealment from the Sheriff, if he asked it. For that matter, virtually any of the cattle men between Jackson and Two-Gwo-Tee would do as much, if they knew he was sought for the slaying of the ranger.

It would be easy enough to make his escape. Nowhere in the United States were conditions more favorable for flight from pursuing officers. Jackson's Hole lay but a few miles to the west, and beyond the Hole lay the Tetons, offering a secure and inviting sanctuary. More than that, he knew the pursuit would be far from diligent. Undoubtedly Sheriff Ogden, to save his face, would follow him as far as the Tetons. But he knew the Sheriff, if he possessed any sort of an excuse, would probably prefer to have him escape.

And then, the Sheriff might believe him drowned, swept away in the flood, which was still roaring through the gorge. Again, Otis could, if need be, bring pressure to bear upon Ogden if he became too conscientious, simply by revealing that he had left a prisoner, chained and helpless, in the path of the flood.

On the other hand—why should he flee from a charge which he knew to be groundless? Flight would convince the entire rangeland of his guilt—if it

retained any doubt, after it heard of the murder. Cowardice was worse than being the object of unfounded suspicion—worse even, than paying the extreme penalty for the crime of some one else. Besides, there was Gus Bernat, who would swear to his alibi—

So Otis fought with himself his first great battle. Two hours later Ogden's chief deputy, sitting in the Sheriff's office in Jackson, brought down the forelegs of his chair in startled surprise as he saw Otis, still handcuffed, dismount and approach stiffly.

"You're dead!" the chief deputy called out at his approach. "Lafe phoned a hour ago that you was drowned in the flood. He's still huntin' for your body."

"Not quite drowned, but almost," Otis grinned. "You see, I'd promised Lafe I wouldn't attempt to escape, so here I am."

"Damn fool!" snorted the chief deputy. "Why didn't you beat it while the beatin' was good?"

"I preferred to have the Sheriff turn me loose himself," Otis replied, smiling. "He'll do it, too, when he hears what Gus Bernat has to say."

"Gus Bernat?" repeated the chief deputy. "Why, he was drowned in the flood hisself. The coroner stopped for his body on the way back with Fyffe's."

CHAPTER VII

Bernat was dead! His alibi was gone! With Bernat had died his last chance for freedom—for life itself, perhaps! What chance remained for him to convince a jury of his innocence? He was enmeshed in a net of overwhelming circumstantial evidence. Who would believe his story now? Who, in the face of Fyffe's written message, of the empty shells in Otis' revolver, of the widely known enmity between the cattle men and the rangers, would hold his weak defense as anything more than a crude and hastily conceived fabrication?

The shock of the discovery of Fyffe's condemning scrawl and of his subsequent arrest had been great, indeed. But through it all he had been buoyed up by the confidence that Bernat could provide an ironclad alibi.

Years before, one of his father's cowhands had been cornered by a grizzly in the Snake River valley south of the Yellowstone. The man had raised his rifle to fire, and the rifle had jammed. Otis, then a boy, had been one of the party which had found the torn and mutilated body, with the jammed rifle by its side.

Now he knew how the cow-hand must have felt at the instant the rifle jammed, with the towering grizzly approaching. For he, Otis, was left helpless before the blind fury of the law.

Sheriff Ogden had returned to Jackson an hour after his chief deputy had led Otis to his cell.

"Yep, Gus Bernat's dead as a doornail," he announced with some evidence of sympathy. "Between you and me, looks like you're outa luck."

Otis shrugged, and tried to smile.

"It can't be helped," he replied. "Guess things aren't breaking my way."

An embarrassing pause was broken by the Sheriff, who began:

"Say, Otis—are you goin' to say anything about bein' left handcuffed to that tree?"

"I don't see why it's necessary," Otis replied. "Why?"

"I was just thinking," Ogden went on, "that maybe I could throw a few favors your way that might help a lot when it comes time for the trial. I wish you'd just forget about that part of it, if you can. I don't suppose you

tried to advertise the fact that you was wearin' handcuffs when you rode into town. Everybody knows you was caught in the flood, and that you came in and gave yourself up. It was mighty white of you, because I know you could have made a clean get-away. It took us longer than we thought to trail Radley, and he got away. But no one knows about the handcuff part except you and me and the boys in the office—and they'll keep their mouths shut."

Otis found that he could laugh. "I wouldn't worry about that, Sheriff. I tell you I don't hold it against you that you arrested me. You were just doing your duty."

Sterling Carr called at the jail in the afternoon to visit his son.

"It aint so bad that you shot the ranger, son," said the old cattle man as he gripped Otis' hand. "But I wish you'd tell me it aint true that you plugged him in the back."

"But I tell you that I didn't shoot him," Otis protested. "I was fifteen miles away at Bernat's cabin when it happened."

"That's all right to tell the jury," the old man returned. "I'll get you the best lawyer in Wyoming, and he'll make 'em believe it. But I wish you'd tell it to me straight."

Otis went through the story from the time he had left the Footstool ranch until his arrest. At its conclusion Sterling Carr shook his head sorrowfully.

"I'm sorry you feel that you can't confide in your own father, Otis," he said. "You ought to know I aint going to tell on you."

"But I tell you it's true—every word of it!"

"Son, as soon as we heard at the ranch about your arrest, I learned from the boys about the meeting last night. They told me how they'd drawn lots to choose the man to run the ranger out of the country. And they told me it had fallen to you, and you'd gotten hot under the collar and told 'em to go to blazes—that you wouldn't do it."

"Doesn't that bear out what I say? I told 'em I wouldn't do it, and I didn't!"

Sterling Carr shook his head.

"How about what old man Foster says?"

"What's that? I didn't know he had anything to do with it."

“Just this: he saw you early this mornin’, ridin’ down the trail from the ranger station to the Buffalo Forks road. Couldn’t be mistaken. Described your hat and your shirt and your vest and your hoss. And that isn’t all. Frog-legs Ferguson of the Flying A saw you farther down the trail. Now don’t you think you’d better tell your old Dad the truth?”

Otis was dumfounded.

“It’s a lie!” he burst out. “I tell you it’s a lie. I was never near the ranger station till I went there with Lafe Ogden. Who told you about Foster and Frog-legs Ferguson? Did you talk to them yourself?”

“No, but Sheriff Ogden did. And he told me about it just before I come in here to see you.”

A sudden suspicion leaped into Otis’ mind. Was the Sheriff trying to “frame” him with manufactured evidence? And if so, why? Why had he come to Otis, begging him to say nothing of the incident of the handcuffs, but concealing the information about the identifications which Otis knew were false?

Why should Sheriff Ogden seek to “railroad” him? What could be the man’s motive? He and Otis, while not close personal friends, had always been on friendly terms.

Could it be that the Sheriff was in some way identified with the cattle rustlers? The thought startled him. Perhaps the Sheriff deliberately was trying to get rid of him, because of his activity against the rustlers!

And mightn’t that theory explain the action of Ogden in chaining him to the tree in the path of the flood? Maybe he had done it deliberately, hoping Otis would be drowned. Maybe he feared that Otis possessed some information against him in connection with the cattle-rustling, which Otis might disclose if he ever came to trial.

But had the murder of the ranger been part of the plot? Otis could hardly believe that the rustlers would kill Fyffe merely to “frame up” a case against him. It would have been too easy to have gotten rid of him by a shot from ambush.

And then, there was the writing on the floor of the ranger cabin. Otis knew beyond any possibility of a doubt that the scrawl had been written by Ranger Fyffe himself, and by no other. No, that by no stretch of the imagination might be called a frame-up.

Otis was completely at a loss.

"I'm sorry, Dad," he said at length, but without revealing any of the suspicions which had come upon him so suddenly. "I guess the Sheriff knows what he's doing. I've told you all there is to tell, and I've told you the truth."

Sterling Carr slowly shook his massive head.

"But why did you pick on Gus Bernat to give your alibi, son?" he asked uncomprehendingly. "There's lots of others just as good, and better. Now, I have a hunch that if you'd remember, even now, that it wasn't Gus Bernat, but Jess Bledsoe that seen you at the time of the killin', that Jess would step right up at the time of the trial an' give 'em all the details."

"Dad," began Otis, very soberly, "I know Jess would do it in a minute. But I'm not going to ask anyone to perjure himself to save me. I believe I could clear this thing up myself, if I had half a chance. Maybe I can, anyway. I can't tell you how much I appreciate your standing by me, because I know you feel that I'm lying to you. But I tell you again, and I'll tell you every single time I see you, that I didn't do it—I didn't do it, and that's all there is to it. How can I make it any stronger?"

His father gazed out through the barred window, across the rolling, wooded slopes of the Gros Ventre.

"Blamed if you don't talk like you meant it, son. I know one person who wont ask more than your say-so to believe it, and that's your sister Margaret."

Otis was on the point of asking if Mariel had faith in his innocence, but a sudden feeling of diffidence restrained the question even as his lips were framing it. After all, why should Mariel, a comparative stranger, have any reason to vary from what seemed to be the opinion of the entire community? He kept silent.

Sterling Carr went on: "It may take every penny I've got, son, but I'll see you come clear of this charge. There's more ways than one of handling a thing like this. But why in the name of Sam Hill did you come back here and give yourself up after you'd gotten away once? That's what I can't figure out."

"I tell you I promised Lufe I wouldn't try to escape," Otis replied simply.

His father snorted. "You're mighty p'ticular. But I don't know but that I'm glad you done it, even if it turns out that it costs me a pretty wad to clear you. I would hate to think you'd light out after you'd passed your word. Do you know why? Because it aint like a man that'd shoot down an unarmed man, to give himself up to the Sheriff after he was free, just because he'd told him he'd do it. That aint very clear, but I guess you know what I mean. Well, so long, son. Don't you worry, 'cause the old man aint the kind to lay down just 'cause he draws to a bum hand."

Otis gripped his father's hand.

"And say, Dad—if you're going back to the ranch, I wish you'd take Pie-face with you. I guess they haven't got any charge to hold him on."

When his father had departed, Otis threw himself down on his bunk to go over again and again the events of the day, seeking a clue which might lead to the solution of the mysterious slaying of Ranger Fyffe. Before the torrent of circumstance which was sweeping him onward toward what seemed certain destruction, he felt more helpless than he had while being tossed about in the flood of Red Rock creek.

He knew that his father would move heaven and earth to bring about his acquittal. Yet, in face of the evidence against him, which seemed incontrovertible, he knew that even the finest legal talent in the State would be of little avail with an impartial jury.

And even so, such an acquittal would not mean vindication in the eyes of the rangeland. He would still be known as the man who had shot the unarmed ranger through the back. In the eyes of Mariel, for instance—

He wished that he had found courage to ask his father if she had expressed an opinion as to his guilt.

CHAPTER VIII

It was night. Far away, Otis could hear the mournful wail of a coyote. By this time the folks at the Footstool ranch must have extinguished the big oil lamp, and have retired. The bunkhouse would be dark. He imagined he could hear the occasional sound of hoofs from the corral, with now and then a nicker or a squeal—the same sounds he had heard a thousand times before. He wondered if it would ever be his fortune to hear them again.

Presently he became conscious of a vague murmur from without the jail, which resolved itself into the sound of scores of pattering hoofs, thudding in the deep dust of the street.

“Some of the boys come in to paint the town,” he thought. And then he remembered that pay-day was two weeks distant, and that “the boys” seldom had occasion to come to town in force at any other time.

He rose leisurely from his bunk, and stepped to the bars of his cell-room, which were some three feet from the barred window. He peered out into the darkness, but could see nothing but some vague and shadowy forms milling about in the gloom.

Suddenly he started at a crashing knock upon the outer door of the little jail. He had heard the knock of a revolver-butt before, and believed he recognized the sound. Three times the knock echoed through the barren interior of the darkened jail. Silence, and then three more knocks, more violent than ever.

Then, in the quavering voice of the old jailer:

“Ye’ve got the wrong place, boys. This aint no saloon. This is the county jail.”

“We know it’s the jail!” Otis thought he remembered the voice. “But it’s going to be a bunch o’ junk, with you in the middle of it, ef you don’t come outa there damn quick. We mean business.”

“Don’t you get fresh with me!” piped up the voice of the old man indignantly. “They aint no bunch o’ pie-eyed cowpunchers kin bullyrag me, I tell ye. G’long about yer business, ’fore I call the Sheriff, an’ ye wake up in the mornin’ on the inside lookin’ out, ’stead o’ the outside lookin’ in!”

“Smash down the door!” came the gruff command from outside.

A moment of silence—a rush of spurred boots—and the whole building shook with the weight suddenly thrown against the door.

And then, in a booming but breathless voice, Otis heard Sheriff Lafe Ogden.

“What’s the trouble here, boys? What d’you want?”

“We want Otis Carr!” came from the midst of the crowd. “Unlock that door, an’ there wont be no trouble. If you don’t, we’re goin’ to tear your dinky little jail to pieces.”

Otis heard a sound of muffled cheering from the crowd. A strange shiver ran down his spine.

“Oh, I guess you wont do that,” came in the voice of the Sheriff from a point immediately outside the door. Otis thought he detected, if not fear, a note of hesitation in Ogden’s voice. He was afraid the Sheriff was bluffing. “Seems to me I have a little to say as to what happens to this here jail.”

“We don’t want no trouble with you-all, Sheriff,” came from the crowd. “Just give us them keys, peaceable, and there wont be none. We don’t want to muss up your little jail.”

“I know you, Simp!” responded the shrill voice of the jailer, from behind the door. “I can see ye! An’ you too, Jess, an’ Slim, an’ Spider, an’ Pink, an’—”

“Shut up!” boomed the gruff command of Lafe Ogden. Then, addressing the crowd:

“Boys, it seems you dont know what you’re try in’ to do. I aint goin’ to let you have Otis, an’ you might as well know it now. What do you want with him? He’s goin’ to have a fair trial, and if he’s guilty he’ll swing for it.”

An ominous silence greeted the Sheriff’s words. He went on:

“There aint been a lynchin’ here since I was Sheriff, and I don’t intend that this’ll be the first!”

Lynching! A shiver ran down Otis’ spine. Was that, then, the object of his erstwhile friends? Was he to be dragged out of the jail and unceremoniously strung up to a pine? He listened with bated breath as the Sheriff continued:

“You may be able to break into the jail, all right. I’m not sayin’ you can’t, ’cause I’m just one against forty. But I can promise you this. I can

promise you that the first six or eight that start for this door will get punctured proper. I—”

“Where’s that rope?” came from somewhere in the crowd. The words struck home with chilling effect upon Otis. “All ready? Yip--yip--ee-e-e!”

Otis heard the rattle of spurs and the rush of feet. A shot rang out from the jail door. It was followed almost instantly by another. He heard a sharp cry of pain—from the lips of the Sheriff, he thought. Then the sound of raw oaths, grunts, and the trampling of feet on the wooden platform outside the door.

He heard a clanging slam from the rear of the jail. He knew that it must have been caused by the fleeing jailer as he banged the rear door behind him.

Now there was nothing but the confused murmur of hushed voices. Otis could catch but a word here and there.

“Too bad.... We had to do it.... He might ’a’ known better.... No, there’s no use o’ smashin’ it now—git them keys outa his pocket.... Here, gimme that—turn him over.... That’s right.... Gimme a hand here, Slim—don’t leave him lay here—we’ll dump him inside.... You git that horse ready, Spider—that’s the ticket.... Shut yore mouth an’ get busy, Curley.”

To Otis, locked within the cell, it seemed many minutes that the murmur of lowered voices continued outside the jail door. He threw himself against the flat steel bars of the cell door, but succeeded only in bruising his shoulder sorely. With one foot braced, waist-high, against the jamb, he wrenched and tugged at the door.

Was this to be the end? Was he to be dragged out and strung up without a chance for his life? Well, if need be, he hoped that he could meet even the horrible death of lynching like a man. Then, perhaps, when they learned the truth of the murder of Joe Fyffe, they’d remember that he’d met his fate without flinching.

A key grated in the lock of the outer door. A moment later the door of the cellroom was flung open, and a dim mass of human figures surged in. Otis conquered his first impulse to shrink back against the bars, and stepped forward to meet them.

“H’lo, Otis,” came in the unmistakable voice of Simple Sample. “Jest dropped in to pay you-all a social call. Thought mebbe you couldn’t he’p

gettin' lonesome like in this here dump. I bet you're 'bout ready to move, aint ye?"

What sort of a farce was this? Was this the way the victim of a lynching bee was taunted before he was dragged out to his death? Otis could swear there hadn't been a trace of animus in Simple's words.

"Wake up, Otis! Are you dumb?" It was Jess Bledsoe speaking. "Don't you know we've got Pie-face waiting for you outside, honin' to take you through the Tetons to Idaho?"

"What—what?" stammered Otis, astounded. "What are you going to do? What—"

"Shut up an' git out o here!" commanded Spider Ponsonby joyously. "Like as not, some o' the honest citizens o' this town will think we're holdin' a necktie party, and 'll take a pot shot at us in the dark."

"But I don't underst—" Otis was being hurried out of the jail in the midst of the throng of cow-men. From time to time he was dealt enthusiastic slaps upon the back. In the dim light he discerned Sheriff Lafe Ogden, reclining against the wall just inside the outer door. The Sheriff's left wrist was shackled to his right ankle with his own handcuffs. His holster swung empty at his thigh. He was fully conscious and unharmed, and was shaking his tingling right hand, from which his revolver had been sent spinning by a well-directed bullet.

"But I thought you shot him!" exclaimed Otis in surprise as he saw the Sheriff.

"He fired in the air to scare us," explained Simple. "So Jess Bledsoe, thinkin' he might hurt somebody next time, shot the gun outa his hand. Jess could hit a dime in the dark at forty paces!"

They were outside now. Otis heard a familiar whinny. Pie-face was being held by a grumbling cow-hand, indignant because his duties as horse-holder had caused him to miss part of the fun.

"But why—" began Otis, not entirely recovered from his astonishment. "Why did you—"

He was standing with his bridle in his left hand, which rested lightly on Pie-face's mane, preparatory to mounting. A dozen of the cow-hands clustered about him, striving to grip him by the hand or to slap him upon the shoulder in token of their approbation.

“‘Cause we didn’t think you had the guts to do it,” answered Simple, who appeared to be their spokesman. “Otis, when you beat it last night after we-all had picked you for—for that job, you had us all plumb fooled by your talk. When you said you wouldn’t do it, we thought you was scared.

“But you was a sight smarter than we was. You wasn’t goin’ to run your neck in no noose by agreein’ to no such con-speeracy. No sir. We figured it all out today. You jest went over to the ranger cabin an’ done your duty, without sayin’ a word to nobody. You don’t s’pose we was goin’ to let you rot in jail after that, do ye?”

Otis raised his hand. “But I tell you I didn’t kill Joe Fyffe. I—”

A chorus of laughter greeted his words.

“That’s good—plumb good, Otis,” Simple cried. “All right. We understand. You didn’t do it. Oh, no, you didn’t. You’re sure plumb up on the law, Otis. Don’t catch you confessin’ to no such crime. That’s right, Otis. I reckon we understand. Don’t worry; we wont admit you done it, neither.

“But remember, Otis, you didn’t make no promises to the Sheriff this time. You can hit the trail an’ go as fur as you like, an’ we’ll guarantee nobody aint goin’ to stop you.”

Otis was exasperated at the stupidity of the cow-men, which would not permit them to believe him when he said he was innocent of the slaying of the ranger. But his heart went out to the loyal men who had flocked to his aid, endangering their own lives to rescue him from the jail. He swung into the saddle.

“Boys,” he called, one arm upraised as he strove to quell the eagerness of Pie-face, “boys, I sure appreciate what you’ve done for me. It was mighty white of you. You don’t believe me when I say I didn’t kill Joe Fyffe. You tell me to hit the trail and keep going.

“All right. I’ll do it. I tell you I’ll not come back—” he stopped to calm Pie-face with a stroke of the hand—“until I’ve found out who really did kill Joe Fyffe!”

CHAPTER IX

The sun was an hour above Two-Gwo-Tee pass when Otis dismounted in front of the Red Rock ranger station. He looped Pie-face's bridle over a post of the barbed-wire fence and made for the cabin. The door was unlocked. He remembered that Sheriff Ogden, as they had departed from the cabin the morning before, had remarked that the coroner would fasten the door after removing the body.

He stepped inside, and swept the interior of the principal room with a quick glance. Nothing had been disturbed. The body had been removed. Nothing else, apparently, had been touched.

He stepped across to the combined office and sleeping-room. It too appeared to be exactly as he had last seen it. He returned to the other room, seated himself upon one of the log stools, and rolled a cigarette.

He had been moved by no definite plan of action when he had determined to return to the cabin. He hoped only that, undisturbed, he might discover some clue which would lead to the solution of the murder. Now he felt that he might conduct his investigation in a leisurely manner. The Sheriff, if he were at liberty by this time, without doubt would start his pursuit—if, indeed, he made any pursuit at all—in the direction of the Tetons. He would never dream that his prisoner had returned to the scene of the murder.

He wondered if the Sheriff had been liberated from his own handcuffs. Certainly, he thought with a smile, he could not have been freed by the jailer, for that valiant person undoubtedly was still running. Probably some of the residents of the town, aroused by the shooting but loath to leave their homes at the time of the one-man jail-delivery, had discovered the Sheriff shortly after the departure of the cowpuncher rescuers, and had found another key to the handcuffs or had filed them from his wrists.

For a time he had feared that a coroner's jury might be impaneled and might visit the cabin during the morning. This fear he dismissed, however, upon reflection that the plank bearing Fyffe's message, and his revolver, the two most damaging bits of evidence, were in the hands of the Sheriff and could be exhibited to the coroner's jury where they were impaneled, thus obviating the necessity of their visiting the scene of the murder.

Could it be possible that Fyffe might have written something else on the floor—some message that later had been obliterated by the pool of blood, and thus remained undiscovered during the investigation by the Sheriff and his deputy?

He doubted it. Yet, determined to investigate everything that promised a shadow of a clue, he knelt on the floor, near the spot where the plank had been ripped from its fastenings.

What remained of the blood-pool on the adjoining planking was now a brown stain. He scrutinized it minutely. For some unaccountable reason the interior of the room grew darker. He wondered absently if the sun had been obscured by the clouds. He raised his head and turned toward the door. There he saw—Mariel Lancaster.

He uttered an exclamation of astonishment and dismay. She too cried out in alarm, shrank back a step, and reached out a supporting hand which she placed upon the door frame.

“Mariel!” he burst out, struggling awkwardly to his feet. “What are you doing here?”

“What—what are *you* doing here?” she demanded in return. “I thought you were in—in jail.”

“I was,” he grinned, “until a few hours ago, when some of my very good friends induced the Sheriff to release me. I thought perhaps you’d heard about it.”

She smiled and advanced a step. “I left the ranch very early—before daybreak,” she explained. “I talked to no one before I left. In fact, I wasn’t at all eager for them to know what I planned to do.”

“And that was—”

Mariel colored slightly. “We’d been hearing so many stories about this terrible affair. I couldn’t believe them all. So I—I just came to see for myself.”

“You didn’t believe I murdered Joe Fyffe?” Otis inquired eagerly.

Mariel dropped her eyes. “No,” she said, “I didn’t.”

“Why?” Otis persisted, thrilling oddly at her words. “Haven’t you heard about what Fyffe wrote? And haven’t you heard about my revolver, with the two empty shells? And haven’t you heard how I was chosen to—to run him

out of the country? Have you heard a single thing that would indicate that I didn't do it?"

"I've heard all those things," she admitted. "And I must confess I haven't heard a thing that indicated your innocence."

"Then why," interrogated Otis, "why do you believe in me?"

Mariel shrugged. "Woman's intuition, I suppose. And in this case that means something that the law doesn't consider. That's character. Somehow, Otis, I can't conceive of a man of your character doing such a thing, and doing it in such a way."

"Mariel, you're the first, and the only one of my friends who has shown that much faith in me. Hasn't it occurred to you that you might be mistaken in your estimate of me?"

Mariel stamped her foot. "I haven't even asked you if you did it," she announced, eyes flashing. "And what's more, I don't intend to. I know you didn't. That's why I left the ranch before dawn to come out here to the ranger station. I'm going to prove that you didn't. I don't know how I'll do it, but I will."

Otis longed to pour out the flood of heartfelt appreciation that swelled up within him. But, untrained in the use of such phrases, his lips failed him. He could only stammer, "Th-thanks, Mariel," as he reddened beneath her direct gaze. But his eyes told her more of the feelings that surged within him than his words could express.

"As a matter of fact," he went on awkwardly, "that's just why I came back here. That is, I mean that I came to search for some clue that might lead me to the discovery of the real murderer. And, like you, I don't know just what it is, but if it's here I mean to find it."

He went on, sketching briefly for her the incidents of the discovery of the murdered ranger and his arrest, touching lightly upon his escape from the flood, and ending with a condensed version of his rescue from the jail.

"Now, let's reason this thing calmly," Mariel began in a businesslike tone when he had finished. "First, what could have been the motive for the murder?"

"I don't know," Otis admitted frankly, "unless it could be the same motive they've charged to me—that is, the natural enmity of the cattle man toward the Government ranger. No one, so far as I know, had any personal

grudge against Joe Fyffe. He kept pretty much to himself, and never quarreled with anyone here, except possibly when some of the ranchers protested at the necessity of applying to the Government for a grazing-permit. His spare time was spent mostly in the pursuit of his hobby, which was wild-animal photography.”

“Could it be that some enemy of yours, Otis, knowing that you had been chosen to—to invite him to leave the country, had killed him with the object of throwing the blame on you?”

“I’ve thought of that,” Otis replied. “For a time I believed that might be the real solution of the case. But the one thing that disproves it is Fyffe’s own writing on the floor. I can swear that’s his writing. Then why, if the chief or even the incidental motive was to cast suspicion on me, should Joe Fyffe himself name me as his murderer?”

Mariel, puzzled, shook her head. “Let’s go over this thing bit by bit. Let’s recreate the scene of the crime, just as it was at the time you entered the cabin. Please show me just where and how the—the body lay, and what details of the room, if any, differ from the way you found it when you entered.”

Otis flung himself face down upon the floor over the hole in the planking.

“This is where we found him,” he explained. “You can see part of the outline of the pool of blood, under my arms here. The message, which was covered with blood at first, was, of course, written here upon the plank which the deputy tore up.”

He rose to his knees and went on: “Right about here, say eighteen inches from his hand, we found the stub of the pencil he had used.

“It seems he had rushed into the cabin, clutched at the phone, knocking his camera off the table, and then had sunk to the floor, probably with the telephone instrument still in his hands.

“We found the telephone hanging from the cord. The camera was on the floor under the table—at least Deputy Markey told us he had found it there, and had replaced it on the table.”

“Then the actual shooting happened outside the cabin?” Mariel asked.

Otis nodded. Then he led her outside, showing her where they had traced the trail of blood and had found the ashes, and telling her how the Sheriff

had deduced that the fire had not burnt itself out, but had been quenched with water.

“And you found no tracks—no other signs of any nature?”

“Tracks a-plenty, but they were meaningless. You see, this is part of the forest grazing land. Cattle have milled over this land outside the fence both before and after the shooting, I suppose.”

“Why couldn’t some of you have thought to preserve some of the footprints you found about the fire? You could have placed a box or something over them to protect them from the weather. That might have solved the whole mystery. Here’s where the shooting took place, and here’s where you should have looked for your clues.”

“But Mariel, you couldn’t keep a footprint—granting we had found any—under a box and then present it in court months later.”

“No, but you could have photographed it. You could have used the ranger’s own camera, if necessary. And photographs sometimes reveal things the human eye can’t see. You know, Otis, I think it might be worth while even now to photograph the ground here, so we can study it at leisure, through a magnifying glass, perhaps. And the interior of the cabin, too. It’s only a bare chance, but it might aid us. Run back to the cabin and get the camera, will you, please?”

As Otis turned his back and made for the cabin, Mariel knelt and made a hasty but careful examination of the earth about the remains of the fire.

Otis appeared presently, fumbling the camera. He walked toward her slowly, lowering the extension frame and extending the bellows.

“Right over here,” Mariel directed. “I think we’ll take this ground surrounding the fire, first.”

“Just a minute,” Otis returned, looking up. “The plate-slide’s missing. We’ll have to find it before we can use this.”

Mariel glanced up at him quickly, her lips parted, as if a significant idea had flashed upon her.

“Let me see it,” she commanded, holding out her hand for the camera. “Um-m. Just as I thought. Look at that plateholder. One plate has been exposed. The slide hasn’t been inserted, and the holder hasn’t been reversed. It looks as if—”

“I’ve got it!” Otis exclaimed eagerly. “It was the last picture Fyffe ever took! And he must have taken it hurriedly, or he’d have replaced the slide and reversed the plate-holder. Maybe—maybe that last plate holds our clue! Maybe it will reveal something about the murder!”

CHAPTER X

For a moment they stood, eying each other in silence. Was this really the clue for which they had been searching? Did the plate hold the solution to the murder? Mariel met Otis' eager glance with shining eyes.

"But we mustn't raise our hopes too high," she protested. "Remember, the camera was knocked off the table in the cabin after Fyffe had run inside. It was closed, too. Wouldn't that show that the ranger hadn't used it since—well, since some time before the murder?"

"That was merely our—my conclusion," Otis reminded her. "The deputy found the camera on the floor under the table. In reconstructing the crime, I leaped at the conclusion that it must have been knocked off the table as he reached for the phone, or when he fell to the floor. Maybe he brought it into the cabin with him as he ran to the telephone after being shot. It's possible that he dropped it as he reached for the phone."

"But," Mariel reasoned, seeking to prevent him from building his hopes too high, "assuming that he had it with him out here when he was shot, and assuming that he had taken some picture that might throw light on the murder—then how did it happen that it was closed when you found it? A man who had just been mortally shot would hardly stop and calmly close his camera before running to summon aid."

Otis' face fell—for just a moment. Then he replied:

"But I'm not sure that it was closed when it was found. Deputy Seth Markey was the one who discovered it. The Sheriff and I were in the other room at the time. As I remember it, it was some time after our return, while we were speculating as to Fyffe's manner of dragging the phone from the table, that the deputy mentioned that Fyffe had knocked the camera off the table.

"It was closed when we noticed it. Seth hadn't said whether it had been closed when he found it. Maybe he closed it himself when he picked it up and restored it to the table."

Mariel, still holding the camera and regarding it curiously, asked suddenly:

"At what time yesterday was Fyffe murdered?"

Her abrupt question took him by surprise. "We got here pretty early in the morning. From the condition of the body and the pool of blood, he must have been dead several hours. As I remember, Lafe Ogden didn't say at just what time the forest supervisor had received the call for help from the ranger station. But we can learn that easily enough. It would fix the exact time of the murder. But what's that got to do with it?"

"Only," Mariel replied slowly, "that if it was dawn or earlier, he couldn't have been taking pictures without a flashlight. Did you find anything of a flash-pan, or flash-powders?"

"Not a trace," Otis replied, beginning to lose some of his enthusiasm. "Of course, we weren't looking for anything of the kind."

"Did you see anything of the plate-slide for the camera?"

"No, we didn't notice that. Fyffe kept most of his materials in the other room of the ranger cabin."

"But if he'd been using the flash-pan and plate-slide at the time he was shot, he'd hardly have taken them back there, would he?"

"No-o. Usually a photographer, when he takes out the slide preparatory to making a picture, places it on top of the camera, if he's using a tripod. If he isn't, and it's a small camera, he'd be apt to thrust it into his pocket. We didn't search his pockets. The coroner could tell us if it was there."

"Well, the next thing to do, Otis, is to develop the plate. Shall I take it to Jackson and have it done? Or do you happen to have facilities at the ranch for developing it?"

Otis laughed, and reached for the camera. "Do you think Fyffe trusted his developing and printing to anyone else? I forgot to tell you that the other room of the ranger cabin was used by Fyffe as a darkroom, for developing his animal pictures. I tell you we can develop this plate and make a print within thirty minutes!"

Mariel gasped out a little exclamation of elation, and started for the cabin.

"But don't be disappointed, Otis, if it's nothing but one of his wild-animal pictures," she told him after he had lowered the blanket over the dark-room window, and had lighted the ruby lamp.

With trembling fingers Otis removed the plate from the holder and placed it in the tray of developing solution. But he was unprepared for the

shock of the discovery they made when, at length, the process completed, Otis lifted the blanket from the window and held the negative up to the light.

Mariel looked at it, and gasped. She looked again, and one hand clutched her throat.

“Why, Otis!” she exclaimed in a voice suddenly low and husky. “Why, Otis! It’s you!”

Otis was stunned. He brushed his eyes with the back of his hand, as if to dispel a hallucination. He held the plate up and looked again.

“It’s you!” Mariel repeated. “Your hat—your vest—those boots and trousers! I could tell it was you in an instant. It’s your build, and everything. And there, behind you, stands Pie-face!”

Otis could not find his voice. He gulped once or twice, striving for words to express his astonishment.

“Why, oh, why didn’t you tell me in the first place?” Mariel was moaning. “Why did you deny it? If you’d only confided in me! Maybe there was some reason—some extenuating circumstance! But Otis, Otis, I didn’t think you’d lie to me! Couldn’t you have trusted me?”

Otis found his voice.

“There’s something wrong, Mariel. It looks like me. Under any other circumstances, I’d say it was a picture of me, even if the face is hidden in shadow. But Mariel, it can’t be! I tell you, something’s wrong! Pie-face and I were miles away from this cabin when that picture was taken. Of course you won’t believe me. Nobody would, now. With Fyffe’s dying message, and the empty cartridges in my gun, and now this picture—well, it looks like it’s all up with me.”

“Perhaps,” put in Mariel hesitantly but hopefully, “perhaps he had taken your picture at some other time, and hadn’t developed it.”

Otis shook his head. “No, to my knowledge Fyffe never took my picture. He never bothered about pictures of anything except wild animals, so far as I know. I still think this was the last picture he ever took. I still think it was taken before he was shot. But I know, as well as I’m standing here, that the man in that picture, however much he looks like me, isn’t Otis Carr!”

Mariel reached for the negative. For many moments she stood at the window, scrutinizing its every detail.

“What is it,” she asked finally, “that you—I mean the man in the picture—has in his hand?”

Otis took the plate again and examined it. “It looks like—Mariel, I believe that’s the clue we’ve been searching for! Look at the horse—there! I’ve got it, Mariel—the solution of everything! Wait until I make a print of that negative. I tell you if that doesn’t prove the whole thing—well, then I’ll be ready to accept the blame without a protest!”

After soaking the plate in alcohol, they placed it outside in the strong dry mountain wind; and in this way dried it in half an hour. Then awkwardly, with unsteady fingers, Otis placed the negative in the printing-frame. Mariel waited with bated breath.

“There!” Otis exclaimed when at last the print was finished. “Look, Mariel! Isn’t it astounding? I’ve suspected it, but I’ve never breathed a word of my suspicions to a soul. This solves everything—*everything!*”

Twenty minutes later, having made an additional print, and with the negative carefully wrapped to protect it from breakage, Otis announced his readiness to leave the cabin. Both were jubilant as they mounted their horses and started down the trail. Suddenly Mariel broke out with an exclamation of annoyance.

“I’ve forgotten something,” she told Otis ruefully. “No, you needn’t bother. You ride on down the trail. I’ll go back to the cabin, but I’ll be with you again in five minutes.”

Otis was puzzled, but he did not question her. Mariel galloped back to the ranger station, flung herself from her horse, and ran into the cabin. She seized the telephone, and called for the forest supervisor in Jackson.

“Call the Sheriff and tell him that if he wants Otis Carr, he can get him at the Footstool ranch in two hours,” she directed without preliminaries. “Phone the Footstool ranch and tell Sterling Carr that Otis is coming home. Tell him to have all the boys there to meet him—everyone who was at the meeting the other night. He’ll understand. What? No, I haven’t time to explain. Come to the Footstool ranch yourself, and you’ll learn everything. That’s all. Good-by.”

Without giving the puzzled supervisor time to question her about her startling directions, she hung up the receiver and ran from the cabin. She remounted, and rode down the trail to join Otis.

“It’s all right,” she smiled at him. “We can take our time. There’s no great hurry to get back to the ranch, now.”

“I don’t think I’ll go back to the ranch,” Otis announced. “I think I’d better look up the Sheriff first thing, and place this evidence in his hands.”

A shadow of annoyance flitted across Mariel’s face.

“Oh, let that go until you’ve shown it to your father and Margaret,” she protested. “Don’t you think they’re entitled to be the first ones to know the good news?”

“It will be a surprise to them both,” Otis grinned. “I know Dad never suspected for a moment.”

“I suspected,” Mariel volunteered.

“Why?” demanded Otis in surprise. “You’ve only been here a week. What foundation did you have for your suspicions?”

“I admit they were only of the vaguest kind,” Mariel smiled. “They had no basis, except intuition. Do you remember what I told you my intuition was based upon?”

Otis colored slightly. “I think I’d better go on to Jackson,” he remarked without answering. “I’ll come back to the ranch later on.”

“I am going straight to the ranch,” Mariel announced positively. “Are you going to let me ride alone?”

“Oh, all right,” Otis laughed. “I guess the Sheriff can wait.”

CHAPTER XI

“And I tell you if I don’t prove to you who killed Ranger Fyffe, I’m ready to go in court tomorrow and plead guilty!” Otis was standing in the living-room of the Footstool ranchhouse, facing a silent and grave-faced assemblage of more than a score. It included Sterling Carr, stern and impassive; Sheriff Ogden, who thus far had made no move to place Otis under arrest again; his deputy, Seth Markey; Jess Bledsoe, resplendent in white goatskin chaps; the forest supervisor from Jackson; Margaret Carr and Mariel, whispering in one corner of the room; Simple Sample and Spider and Slim and Curley and Pink and Tex and possibly a dozen others from the Footstool, Flying A and other outfits, all solemnly curious, awkward and embarrassed. Otis, unaware of the dramatic setting arranged by Mariel for the denouement, had taken the bull by the horns and now was determined to bulldog him to a fall.

“And what’s more,” he went on, gazing intently at the Sheriff, “I’m going to tell you, Lafe, just who’s responsible for the rustling that’s been going on here, and just how it was done.”

The Sheriff stirred uneasily. “Fire away, Otis,” he remarked. “Between you and me, if you’ve found that out, I’ll give it to you that you’ve done more’n I could.”

“All of you boys know how this rustling has been going on here for months,” Otis commenced. “All of us have reported losses from time to time—the Lazy Y, the Flying A, the Footstool and others—but mostly it was the Footstool calves that seemed to be the favorites of the rustlers.

“Now, most all of us seemed to hold a grudge against Joe Fyffe because he was in the Government service. We seemed to think the Government wanted to run us off the range. We couldn’t see that the forest service is keeping us from ruining our own range by overgrazing. We couldn’t see that it’s keeping the sheep on the sheep range, and keeping the nesters where they’ll be better off and we’ll be better off. We thought all a ranger was good for was to fight forest-fires.

“I’ve kept my mouth shut up to this time, principally because I knew how Dad felt about these things. But now I’m going to talk straight, and I’m going to say a mouthful.

“You thought you could run Joe Fyffe out of the country, and that would be all there’d be to it. You didn’t realize the Government’d keep sending in rangers, and that another one’s due to take Fyffe’s place at the Red Rock station now.

“The other night you got together, and decided you’d scare the ranger out. You drew lots, and picked me for the job. I told you I wouldn’t do it, and I didn’t.

“When he was killed, you thought I’d changed my mind, and done it. That’s why you yanked me out of jail last night. Even then you wouldn’t believe me when I told you I hadn’t killed him. Boys, you’re the best friends a man ever had, but you’ve got the wrong slant on things.

“After I left you the other night, I tell you I was feeling pretty mean. I wanted to get out alone. I started up the river, figuring I’d lay out and have a look for the rustlers. I ran into Gus Bernat, and he asked me to stay at his cabin overnight. If Gus hadn’t been drowned in the flood, you’d never have had to get me out of jail last night.

“Along toward morning, Ranger Fyffe heard a noise outside his cabin, I judge, from the way things turned out. He figured it was a lion, or a cat or something. Maybe he’d planted bait outside, and had waited all night—but that doesn’t matter.

“You all know Joe was a nut on taking wild-animal pictures. He got his camera and his flash-powder, and sneaked outside to grab off a picture of this animal that was making the noise. He made his way through the dark of the scrub pines toward the sound. He didn’t take a gun, ’cause he knew there isn’t an animal left in these parts, outside the grizzlies on the edge of Yellowstone, that’ll attack a man unless they’re cornered.

“He crept up toward the spot where he’d heard the noise—where he probably heard it then. He couldn’t see the man’s fire, because it was beyond a group of rocks. In a minute I’ll tell you what the fire was for. He took the plate-slide out of his camera, and got his flash-gun ready. Then, like as not, he whistled so the animal would turn toward him, and shot off the flash.

“But it wasn’t an animal making the sound. It was a man. Maybe this man was pretty badly scared—you or I would be if that flash went off near us in the night. Anyway, he’d faced around when he heard Joe whistle. He dropped what he had in his hand, and jerked out his gun, and shot.

“Joe was wounded. He hadn’t known it was a man. He hadn’t expected to be shot. He turned and started to run for his gun in the cabin. The man fired again. The bullet hit Joe in the back.

“He ran into the cabin, dropped his camera, and grabbed for the phone. He gasped a few words into the receiver, and then dropped to the floor. He knew he was dying. He got his pencil and wrote on the floor—you’ve all heard what he wrote.

“Maybe the man followed him into the cabin. I rather think he did, because it would have been hard for Joe to have seen him when the flashlight went off. But that doesn’t matter. He saw him.

“That’s the way the Sheriff and Seth and I found things yesterday morning. Isn’t it, Lafe?”

“That’s about right,” the Sheriff replied uneasily, “though I didn’t know about any flashlight.”

“Now, the whole solution of this thing rests in that last picture the ranger took,” Otis went on. “It shows who did the shooting. Miss Mariel got the plate this morning and developed it. Here’s the print.”

He passed the photograph to the Sheriff, who glanced at it, whistled softly, and passed it on to Sterling Carr. Others in the room crowded about him, eager for a sight of the picture.

Sterling Carr glanced sternly at Otis.

“Son, this picture shows *you*!”

“Sure, that’s Otis!” came the bewildered tones from those crowded about the picture.

“Looks like you, all right,” the Sheriff said to Otis.

Otis smiled indulgently.

“That’s what Joe Fyffe thought, too,” he remarked. “He got one glance at the man, and thought it was me. That’s why he wrote on the floor that I killed him. He died thinking I was his murderer.

“And can you blame him? Look at that hat. Just like mine. Look at that vest. Just like mine. Pants the same. Boots the same. Build the same as mine. Horse looks a lot like Pie-face.

“All right. We’ll let that ride for a minute. Let’s get back to the rustling. No one ever saw the rustler, did he? No.

“Now look at the picture again. See that calf? Looks like it just happened into the picture, like any of the calves on the range around the cabin, doesn’t it? Notice its feet? Just like it’s been hog-tied, and slipped its hind foot out of the knot, isn’t it? Look at the brand. Not like any brand hereabouts, is it?

“What’s that the man’s got in his hand? That’s right. It’s a running-iron. That’s what he dropped when he grabbed his gun. He must have recovered it after the murder, when he doused his fire and beat it. Take a look at the horse, now. He hasn’t got a star-face, like Pie-face, has he? And notice those white stockings. Never saw white stockings on Pie-face, did you?

“Now we’re getting down to cases. You’ve guessed most of the rest of it. The man’s the rustler that Fyffe surprised while he was working over that calf with the running-iron. Dressed like me. Did it intentional, too. If anyone saw him at a distance, they’d think it was me, and they’d never suspect anything. And he didn’t aim to let anyone see him close.

“Sheriff, you told Dad about old man Foster and Frog-legs Ferguson seeing me near the ranger cabin after the shooting, didn’t you? Well, I guess what they said was true enough. They *thought* they saw me. But I tell you, whom they saw was this man, dressed like me, and riding a horse that looks a lot like mine. Just what this brand-blotter had figured on.”

“But who,” interrupted Sterling Carr, “is the man in the picture? His face doesn’t show.”

Again Otis smiled.

“Look at the calf again,” he directed. “Now I’ll hide the top of that brand with my thumb. What’s the bottom of it look like?”

“By God!” Sterling Carr burst forth. “It’s the Footstool!”

“Yes,” Otis concurred. “And that part I’ve hidden with my thumb shows that one of the legs of the footstool had been extended with the running-iron, over the seat of the stool, doesn’t it? That leaves the changed brand only half complete.

“Now, what brand would result if he extended the other leg of the footstool until both legs met above the seat of the stool?”

“Why,” exclaimed Sterling Carr, “it’s the Flying A!”

“Exactly,” grinned Otis. “Now, look at the fellow’s hand. Who on the Flying A has a finger missing? If—grab that man!”

The last words were shot out explosively. Otis leaped toward the figure which had shot toward the door. A dozen of the cow-hands closed in upon the fugitive. Margaret Carr screamed. There were grunts and oaths from the tangled mass of figures near the door. A set of elk antlers was knocked crashing to the floor.

“All right, boys,” came in muffled tones from beneath the mass of figures. “Leave him loose. I’ve got him!”

The heap of bodies untangled. From its midst arose Sheriff Lafe Ogden. One hand gripped the sleeve of Jess Bledsoe of the Flying A. His wrists were manacled in handcuffs. He glared wildly about the room.

“I guess,” drawled the Sheriff, “that we don’t need to see the face in the picture now, to know who’s been rustling the cattle on this range, or to know who killed Joe Fyffe. Pretty shrewd, while it lasted. Dressed like Otis, and complained to me every so often about the rustlers, so it would look like he was losin’ calves too. Well, he wont ride that chestnut horse that looks like Otis’ Pie-face chestnut for a while, I’ll guarantee.”

“I suspicioned it all the time,” broke in Simple Sample. “But Otis, how about them rangers? Cain’t you-all figger out some way to get rid of them, now that you’ve figgered this out so purty?”

“I don’t think you’ll have much trouble with the Red Rock ranger station after this, boys,” Otis laughed. “You see, I put in my application for a job as forest ranger months ago. Fyffe’s death leaves the first vacancy.

“I was talking it over with Mariel as we rode down here from the ranger cabin this morning. You can be sure of a square deal all right from some one who has the stockmen’s interests at heart. She and I decided that I’m going to take the Red Rock ranger job just as soon—”

He reached out and took Mariel by the hand.

“—just as soon as we’re married!”

THE END

Transcriber’s Note: This story appeared in the February 1924 issue of *The Blue Book Magazine*.

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